

Conditions of Contract PA23 Short Form

CEFAS25-35 – Contract for Provision of Africa Regional Support Requirements



SHORT FORM CONTRACT FOR THE SUPPLY OF GOODS AND/OR SERVICES

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Centre for Environment
Fisheries & Aquaculture
Science



II. Cover Letter

Event Perfekt Global Ltd
20-22 Wenlock Road
London
N1 7GU

Attn: Lynda Kumolu-Johnson
By email to: info@eventperfekt.com

Date: 30th May 2025

Our ref: **CEFAS25-35**

Dear Lynda,

Supply of Africa Support Requirements

Following your tender/proposal for the supply of Africa Regional Support Requirements to **The Secretary of State for Environment, Food and Rural Affairs** acting as part of the Crown through the **Centre for Environment, Fisheries and Aquaculture Science**, we are pleased confirm our intention to award this Contract to you.

The attached Order Form, contract Conditions and the Annexes set out the terms of the Contract between **Centre for Environment, Fisheries and Aquaculture Science**, and **Event Perfekt Global Ltd** for the provision of the Deliverables set out in the Order Form.

We thank you for your co-operation to date and look forward to forging a successful working relationship resulting in a smooth and successful Delivery of the Deliverables. Please confirm your acceptance of this Contract by signing and returning the Order Form via the eProcurement system within 7 days from the date of the Order Form. No other form of acknowledgement will be accepted. Please remember to include the reference number(s) above in any future communications relating to this Contract.

We will then arrange for the Order Form to be countersigned which will create a binding contract between us.

Yours faithfully,

Laura Anderson

Procurement Administrative Officer
Pakefield Road,
Lowestoft,
Suffolk,
NR33 0HT, UK



III. Order Form

1. Contract Reference	CEFAS25-35	
2. Buyer	Centre for Environment, Fisheries and Aquaculture Science , Pakefield Road, Lowestoft, Suffolk, NR33 0HT. In entering into this Contract, the Buyer is acting as part of the Crown and the Supplier shall be treated as contracting with the Crown as a whole.	
3. Supplier	Event Perfekt Global Ltd. 20 Wenlock Road, London, N1 7GU, United Kingdom. Company No: 15875326	
4. The Contract	This Contract between the Buyer and the Supplier is for the supply of Deliverables. The Supplier shall supply the Deliverables described below on the terms set out in this Order Form and the attached contract conditions (" Conditions ") and Annexes. Unless the context otherwise requires, capitalised expressions used in this Order Form have the same meanings as in the Conditions.	
5. Deliverables	Goods	None
	Services	Description as set out in: • in Annex 2 – Specification • in the Supplier's tender as set out in Annex 4 – Supplier Tender The Services are: • To be performed at various locations in Africa as required by the Buyer. • Date(s) of Delivery to be as required by the Buyer.
6. Specification	The specification of the Deliverables is as set out: • in Annex 2 – Specification • in the Supplier's tender as set out in Annex 4 – Supplier Tender	
7. Start Date	9 th June 2025 or ASAP after Contract award	
8. Expiry Date	9 th June 2027	
9. Extension Period	Not applicable	
10. Buyer Cause	Any Material Breach of the obligations of the Buyer or any other default, act, omission, negligence or statement of the Buyer, of its employees, servants, agents in connection with or in relation to the subject-matter of the Contract and in respect of which the Buyer is liable to the Supplier.	
11. Optional Intellectual Property Rights	Not applicable	

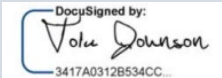


("IPR") Clauses	
12. Charges	The Charges for the Deliverables shall be as set out in Annex 3 – Charges.
13. Payment	Payment of valid and undisputed invoices will be made within 30 days of receipt of the invoice or, if later, the date by which the payment falls due in accordance with the invoice, which must be submitted promptly by the Supplier. All invoices must be sent, quoting a valid Purchase Order Number (PO Number) and any other relevant details including the minimum required information set out in Section 68(9) of the Procurement Act 2023, to: finance@cefas.gov.uk Alternatively, you may post to: Cefas Pakefield Road Lowestoft Suffolk NR33 0HT Within 10 Working Days of receipt of your countersigned copy of this Order Form, we will send you a unique PO Number. You must be in receipt of a valid PO Number before submitting an invoice. To avoid delay in payment it is important that the invoice is compliant and that it includes a valid PO Number, item number (if applicable) and the details (name, email, and telephone number) of your Buyer contact (i.e., Buyer Authorised Representative). Non-compliant invoices may be sent back to you, which may lead to a delay in payment. Payments will be made to Event Perfekt Global Ltd. Revolut Bank Account Number 78253411 Sort Cod 04-29-09. If you have a query regarding an outstanding payment please contact our finance team by email to: finance@cefas.gov.uk.
14. Data Protection Liability Cap	In accordance with clause 12.6 of the Conditions, the Supplier's total aggregate liability under clause 14.5.4 of the Conditions is no more than the Data Protection Liability Cap, being £500,000.
15. Progress Meetings and Progress Reports	As set out in Annex 2 - Specification of Requirements
16. Buyer Authorised Representative(s)	For general liaison your contact will continue to be Justin Avant – Animal Health Portfolio Lead justin.avant@cefas.gov.uk
17. Supplier Authorised	For general liaison your contact will continue to be Lynda Johnson , Info@eventperfekt.com



Representative(s)	or, in their absence, Greg.Anobili Greg.Anobili@eventperfekt.com														
18. Address for notices	In accordance with clause 26.1, all notices under the Contract shall be in writing and will be served by e-mail unless it is not practicable to do so. Attention: Procurement Team Lynda Johnson Address: procure@cefas.gov.uk Info@eventperfekt.com Attention: Director Address: 20 Wenlock Road, London, N1 7GU, United Kingdom														
19. Key Staff	<table><tr><td>Key Staff Role:</td><td>Key Staff Name</td><td>Contact Details:</td></tr><tr><td>Director</td><td>Lynda Johnson</td><td>Info@eventperfekt.com</td></tr><tr><td>Programme Manager</td><td>Margret Wellington</td><td>Margret.wellington@eventperfekt.com</td></tr><tr><td>Cyber and DPO Lead</td><td>AJ</td><td>AJ.Adesanya@eventperfekt.com</td></tr></table>			Key Staff Role:	Key Staff Name	Contact Details:	Director	Lynda Johnson	Info@eventperfekt.com	Programme Manager	Margret Wellington	Margret.wellington@eventperfekt.com	Cyber and DPO Lead	AJ	AJ.Adesanya@eventperfekt.com
Key Staff Role:	Key Staff Name	Contact Details:													
Director	Lynda Johnson	Info@eventperfekt.com													
Programme Manager	Margret Wellington	Margret.wellington@eventperfekt.com													
Cyber and DPO Lead	AJ	AJ.Adesanya@eventperfekt.com													
20. Procedures and Policies	For the purposes of the Contract the applicable policies and procedures are available at: Policies, plans, reports and quality - Cefas (Centre for Environment, Fisheries and Aquaculture Science)														
21. Optional Security Requirements	The following annex shall apply to this Contract: Not applicable														
22. Special Terms	Not Applicable														
23. Incorporated Terms	The following documents are incorporated into the Contract. If there is any conflict, the following order of precedence applies: (a) The cover letter from the Buyer to the Supplier (b) This Order Form (c) Any Special Terms (see row 22 (Special Terms) in this Order Form) (d) Conditions (e) The following Annexes in equal order of precedence: i. Annex 1 – Processing Personal Data ii. Annex 2 – Specification iii. Annex 3 – Charges iv. Annex 4 – Supplier Tender, unless any part of the Tender offers a better commercial position for the Buyer (as decided by the Buyer, in its absolute discretion), in which case that part of the Tender will take precedence over the documents above.														



Signed for and on behalf of the Supplier	Signed for and on behalf of the Buyer acting on behalf of the Crown
Name: Lynda Tolulope Kumolu Johnson Event Perfekt Global Director	Name: Laura Anderson Procurement Administrative Officer
Date: 30/05/2025	Date: 30/05/2025
Signature: 	Signature: <i>Laura Anderson</i>



IV. Short form Terms ("Conditions")

1 DEFINITIONS USED IN THE CONTRACT

1.1 In this Contract, unless the context otherwise requires, the following words shall have the following meanings:

"Affiliates"	in relation to a body corporate, any other entity which directly or indirectly Controls (in either of the senses defined in sections 450 and 1124 of the Corporation Tax Act 2010 and "Controlled" shall be construed accordingly), is Controlled by, or is under direct or indirect common Control of that body corporate from time to time;
"Audit"	the Buyer's right to: (a) verify the accuracy of the Charges and any other amounts payable by the Buyer under the Contract (including proposed or actual variations to them in accordance with the Contract); (b) verify the costs of the Supplier (including the costs of all Subcontractors and any third party suppliers) in connection with the provision of the Deliverables; (c) verify the Supplier's and each Subcontractor's compliance with the applicable Law; (d) identify or investigate actual or suspected breach of clauses 4 to 33 (inclusive), impropriety or accounting mistakes or any breach or threatened breach of security and in these circumstances the Buyer shall have no obligation to inform the Supplier of the purpose or objective of its investigations; (e) identify or investigate any circumstances which may impact upon the financial stability of the Supplier and/or any Subcontractors or their ability to provide the Deliverables; (f) obtain such information as is necessary to fulfil the Buyer's obligations to supply information for parliamentary, ministerial, judicial or administrative purposes including the supply of information to the Comptroller and Auditor General; (g) review any books of account and the internal contract management accounts kept by the Supplier in connection with the Contract; (h) carry out the Buyer's internal and statutory audits and to prepare, examine and/or certify the Buyer's annual and interim reports and accounts; (i) enable the National Audit Office to carry out an examination pursuant to Section 6(1) of the National Audit Act 1983 of the economy, efficiency and effectiveness with which the Buyer has used its resources;
"Beneficiary"	a Party having (or claiming to have) the benefit of an indemnity under this Contract;
"Buyer Cause"	has the meaning given to it in the Order Form;



"Buyer"	the person named as Buyer in the Order Form. Where the Buyer is a Crown Body the Supplier shall be treated as contracting with the Crown as a whole;
"Charges"	the charges for the Deliverables as specified in the Order Form;
"Claim"	any claim which it appears that the Buyer is, or may become, entitled to indemnification under this Contract;
"Conditions"	these short form terms and conditions of contract;
"Confidential Information"	all information, whether written or oral (however recorded), provided by the disclosing Party to the receiving Party and which (a) is known by the receiving Party to be confidential; (b) is marked as or stated to be confidential; or (c) ought reasonably to be considered by the receiving Party to be confidential;
"Conflict of Interest"	a direct or indirect conflict between the financial, professional or personal interests of the Supplier or the Supplier Staff and the duties owed to the Buyer under the Contract, in the reasonable opinion of the Buyer;
"Contract"	the contract between the Buyer and the Supplier which is created by the Supplier's counter signing the Order Form and includes the cover letter (if used), Order Form, these Conditions and the Annexes;
"Contract Year"	(a) a period of 12 months commencing on the Start Date; and (b) thereafter a period of 12 months commencing on each anniversary of the Start Date, with the final Contract Year ending on the expiry or termination of the Term;
"Controller"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires;
"Crown Body"	the government of the United Kingdom (including the Northern Ireland Assembly and Executive Committee, the Scottish Government and the Welsh Government), including, but not limited to, government ministers and government departments and particular bodies, persons, commissions or agencies from time to time carrying out functions on its behalf;
"Data Loss Event"	any event that results, or may result, in unauthorised access to Personal Data held by the Processor under this Contract, and/or actual or potential loss and/or destruction of Personal Data in breach of this Contract, including any Personal Data Breach;
"Data Protection Impact Assessment"	an assessment by the Controller of the impact of the envisaged processing on the protection of Personal Data;
"Data Protection Legislation"	(a) the UK GDPR, (b) the DPA 2018;



	(c) all applicable Law about the processing of personal data and privacy and guidance issued by the Information Commissioner and other regulatory authority; and (d) (to the extent that it applies) the EU GDPR (and in the event of conflict, the UK GDPR shall apply);
"Data Protection Liability Cap"	has the meaning given to it in row 14 of the Order Form;
"Data Protection Officer"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires;
"Data Subject Access Request"	a request made by, or on behalf of, a Data Subject in accordance with rights granted pursuant to the Data Protection Legislation to access their Personal Data;
"Data Subject"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires;
"Deliver"	hand over of the Deliverables to the Buyer at the address and on the date specified in the Order Form, which shall include unloading and stacking and any other specific arrangements agreed in accordance with clause 4.2. "Delivered" and "Delivery" shall be construed accordingly;
"Deliverables"	the Goods, Services, and/or software to be supplied under the Contract as set out in the Order Form;
"Developed System"	the software or system that the Supplier is required to develop under this Contract;
"DPA 2018"	the Data Protection Act 2018;
"EU GDPR"	Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation) as it has effect in EU law;
"Existing IPR"	any and all intellectual property rights that are owned by or licensed to either Party and which have been developed independently of the Contract (whether prior to the date of the Contract or otherwise);
"Expiry Date"	the date for expiry of the Contract as set out in the Order Form;
"FOIA"	the Freedom of Information Act 2000 together with any guidance and/or codes of practice issued by the Information Commissioner or relevant Government department in relation to such legislation;
"Force Majeure Event"	any event, circumstance, matter or cause affecting the performance by either the Buyer or the Supplier of its obligations arising from: (a) acts, events, omissions, happenings or non-happenings beyond the reasonable control of the Party seeking to claim relief in respect of a Force Majeure Event (the "Affected Party") which prevent or materially delay the Affected Party from performing its obligations under the Contract;



	(b) riots, civil commotion, war or armed conflict, acts of terrorism, nuclear, biological or chemical warfare; (c) acts of a Crown Body, local government or regulatory bodies; (d) fire, flood or any disaster; or (e) an industrial dispute affecting a third party for which a substitute third party is not reasonably available but excluding: (a) any industrial dispute relating to the Supplier, the Supplier Staff (including any subsets of them) or any other failure in the Supplier or the Subcontractor's supply chain; (b) any event, occurrence, circumstance, matter or cause which is attributable to the wilful act, neglect or failure to take reasonable precautions against it by the Party concerned; and (c) any failure of delay caused by a lack of funds, and which is not attributable to any wilful act, neglect or failure to take reasonable preventative action by that Party;
"Good Industry Practice"	standards, practices, methods and procedures conforming to the Law and the exercise of the degree of skill and care, diligence, prudence and foresight which would reasonably and ordinarily be expected from a skilled and experienced person or body engaged within the relevant industry or business sector;
"Goods"	the goods to be supplied by the Supplier to the Buyer under the Contract;
"Government Data"	any: (a) data, text, drawings, diagrams, images or sounds (together with any database made up of any of these) which are embodied in any electronic, magnetic, optical or tangible media; (b) Personal Data for which the Buyer is a, or the, Data Controller; or (c) any meta-data relating to categories of data referred to in (a) or (b) that: (i) is supplied to the Supplier by or on behalf of the Buyer; and/or (ii) that the Supplier is required to generate, Process, Handle, store or transmit under this Contract;
"Indemnifier"	a Party from whom an indemnity is sought under this Contract;
"Independent Controller"	a party which is Controller of the same Personal Data as the other Party and there is no element of joint control with regards to that Personal Data;
"Information Commissioner"	the UK's independent authority which deals with ensuring information relating to rights in the public interest and data privacy for individuals is met, whilst promoting openness by public bodies;
"Insolvency Event"	in respect of a person:



	(a) if that person is insolvent; (b) where that person is a company, LLP or a partnership, if an order is made or a resolution is passed for the winding up of the person (other than voluntarily for the purpose of solvent amalgamation or reconstruction); (c) if an administrator or administrative receiver is appointed in respect of the whole or any part of the person's assets or business; (d) if the person makes any composition with its creditors; or (e) takes or suffers any similar or analogous action to any of the actions detailed in this definition as a result of debt in any jurisdiction;
"IP Completion Day"	has the meaning given to it in the European Union (Withdrawal Agreement) Act 2020;
"IR35"	Chapter 8 and Chapter 10 of Part 2 of Income Tax (Earnings and Pensions) Act 2003 and the Social Security Contributions (Intermediaries) Regulations 2000;
"Joint Controller Agreement"	the agreement (if any) entered into between the Buyer and the Supplier substantially in the form set out in Part B Joint Controller Agreement (<i>Optional</i>) of Annex 1 – Processing Personal Data;
"Joint Controllers"	where two or more Controllers jointly determine the purposes and means of processing;
"Key Staff"	any persons specified as such in the Order Form or otherwise notified as such by the Buyer to the Supplier in writing, following agreement to the same by the Supplier;
"Law"	any law, subordinate legislation within the meaning of section 21(1) of the Interpretation Act 1978, bye-law, right within the meaning of the European Union (Withdrawal) Act 2018 as amended by European Union (Withdrawal Agreement) Act 2020, regulation, order, regulatory policy, mandatory guidance or code of practice, judgment of a relevant court of law, or directives or requirements of any regulatory body with which the Supplier is bound to comply;
"Material Breach"	a single serious breach or a number of breaches or repeated breaches (whether of the same or different obligations and regardless of whether such breaches are remedied)
"National Insurance"	contributions required by the Social Security Contributions and Benefits Act 1992 and made in accordance with the Social Security (Contributions) Regulations 2001 (SI 2001/1004);
"New IPR Items"	a deliverable, document, product or other item within which New IPR subsists;
"New IPR"	all and intellectual property rights in any materials created or developed by or on behalf of the Supplier pursuant to the Contract but shall not include the Supplier's Existing IPR;
"Open Licence"	any material that is published for use, with rights to access and modify, by any person for free, under a generally recognised open licence including Open Government Licence as set out at http://www.nationalarchives.gov.uk/doc/open-



	government-licence/version/3/ as updated from time to time and the Open Standards Principles documented at https://www.gov.uk/government/publications/open-standards-principles/open-standards-principles as updated from time to time;
"Order Form"	the order form signed by the Buyer and the Supplier printed above these Conditions;
"Party"	the Supplier or the Buyer (as appropriate) and "Parties" shall mean both of them;
"Personal Data Breach"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires and includes any breach of Data Protection Legislation relevant to Personal Data processed pursuant to the Contract;
"Personal Data"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires;
"Prescribed Person"	a legal adviser, an MP or an appropriate body which a whistle-blower may make a disclosure to as detailed in 'Whistleblowing: list of prescribed people and bodies', 24 November 2016, available online at: https://www.gov.uk/government/publications/blowing-the-whistle-list-of-prescribed-people-and-bodies--2/whistleblowing-list-of-prescribed-people-and-bodies as updated from time to time;
"Processor Personnel"	all directors, officers, employees, agents, consultants and suppliers of the Processor and/or of any Sub-processor engaged in the performance of its obligations under the Contract;
"Processor"	has the meaning given to it in the UK GDPR or the EU GDPR as the context requires;
"Protective Measures"	technical and organisational measures which must take account of: (a) the nature of the data to be protected; (b) harm that might result from Data Loss Event; (c) state of technological development; (d) the cost of implementing any measures; including pseudonymising and encrypting Personal Data, ensuring confidentiality, integrity, availability and resilience of systems and services, ensuring that availability of and access to Personal Data can be restored in a timely manner after an incident, and regularly assessing and evaluating the effectiveness of the such measures adopted by it, including those outlined in Annex 1 (<i>Processing Personal Data</i>) and Annex 6 (<i>Security Management</i>) (if used);
"Purchase Order Number" or "PO Number"	the Buyer's unique number relating to the order for Deliverables to be supplied by the Supplier to the Buyer in accordance with the Contract;
"Rectification Plan"	the Supplier's plan (or revised plan) to rectify its Material Breach which shall include: (a) full details of the Material Breach that has occurred, including a root cause analysis;



	(b) the actual or anticipated effect of the Material Breach; and (c) the steps which the Supplier proposes to take to rectify the Material Breach (if applicable) and to prevent such Material Breach from recurring, including timescales for such steps and for the rectification of the Material Breach (where applicable);
"Regulations"	the Public Contracts Regulations 2015 and/or the Public Contracts (Scotland) Regulations 2015 (as the context requires) as amended from time to time;
"Request For Information"	has the meaning set out in the FOIA or the Environmental Information Regulations 2004 as relevant (where the meaning set out for the term "request" shall apply);
"Security Requirements"	the security requirements set out in the Order Form or in Annex 6 (<i>Security Management</i>) (if used);
"Services"	the services to be supplied by the Supplier to the Buyer under the Contract;
"Specification"	the specification for the Deliverables to be supplied by the Supplier to the Buyer (including as to quantity, description and quality) as specified in the Order Form;
"Start Date"	the start date of the Contract set out in the Order Form;
"Sub-Contract"	any contract or agreement (or proposed contract or agreement), other than the Contract, pursuant to which a third party: (a) provides the Deliverables (or any part of them); (b) provides facilities or services necessary for the provision of the Deliverables (or any part of them); and/or (c) is responsible for the management, direction or control of the provision of the Deliverables (or any part of them);
"Subcontractor"	any person other than the Supplier, who is a party to a Sub-Contract and the servants or agents of that person;
"Subprocessor"	any third party appointed to process Personal Data on behalf of the Processor related to the Contract;
"Supplier Staff"	any individual engaged, directly or indirectly, or employed by the Supplier or any Subcontractor, in the management or performance of the Supplier's obligations under this Contract;
"Supplier"	the person named as Supplier in the Order Form;
"Supply Chain Intermediary"	any entity (including any company or partnership) in an arrangement with a Worker, where the Worker performs or is under an obligation personally to perform, services for the Buyer;
"Term"	the period from the Start Date to the Expiry Date as such period may be extended in accordance with clause 11.2 or terminated in accordance with the Contract;
"Third Party IPR"	intellectual property rights owned by a third party which is or will be used by the Supplier for the purpose of providing the Deliverables;



"Transparency Information"	(a) any information which is published in accordance with guidance issued by His Majesty's Government, from time to time; (b) any information or notices, permitted or required to be published by the Procurement Act 2023, any Regulations published under it, and any PPNs, subject to any exemptions set out in sections 94 and 99 of the Procurement Act 2023, which shall be determined by the Buyer, taking into consideration any information which is Confidential Information; and (c) any information about the Contract, including the content of the Contract, and any changes to this Contract agreed from time to time, as well as any information relating to the Deliverables and performance pursuant to the Contract required to be disclosed under FOIA or the Environmental Information Regulations 2004, subject to any exemptions, which shall be determined by the Buyer, taking into consideration any information which is Confidential Information;
"US Data Privacy Framework"	as applicable: (a) the UK Extension to the EU-US Data Privacy Framework; and/or (b) the EU-US Data Privacy Framework;
"UK GDPR"	has the meaning as set out in section 3(10) of the DPA 2018, supplemented by section 205(4);
"VAT"	value added tax in accordance with the provisions of the Value Added Tax Act 1994;
"Worker"	any individual that personally performs, or is under an obligation personally to perform services for the Buyer; and
"Working Day"	a day (other than a Saturday or Sunday) on which banks are open for business in the City of London.

2 UNDERSTANDING THE CONTRACT

2.1 In the Contract, unless the context otherwise requires:

- 2.1.1 references to numbered clauses are references to the relevant clause in these Conditions;
- 2.1.2 any obligation on any Party not to do or omit to do anything shall include an obligation not to allow that thing to be done or omitted to be done;
- 2.1.3 references to "writing" include printing, display on a screen and electronic transmission and other modes of representing or reproducing words in a visible form;
- 2.1.4 a reference to a Law includes a reference to that Law as modified, amended, extended, consolidated, replaced or re-enacted (including as a consequence of the Retained EU Law (Revocation and Reform) Act 2023) from time to time before or after the date of this Contract and any prior or subsequent legislation under it;
- 2.1.5 the word "including", "for example" and similar words shall be understood as if they were immediately followed by the words "without limitation";
- 2.1.6 any reference which, immediately before IP Completion Day (or such later date when relevant EU law ceases to have effect pursuant to section 1A of the European Union (Withdrawal) Act 2018), is a reference to (as it has effect from time to time) any EU



regulation, EU decision, EU tertiary legislation or provision of the EEA agreement ("**EU References**") which is to form part of domestic law by application of section 3 of the European Union (Withdrawal) Act 2018 and which shall be read on and after IP Completion Day as a reference to the EU References as they form part of domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 as modified by domestic law from time to time; and

- 2.1.7 a reference to a document (including this Contract) is to that document as varied, amended, novated, ratified or replaced from time to time.

3 HOW THE CONTRACT WORKS

- 3.1 The Order Form is an offer by the Buyer to purchase the Deliverables subject to and in accordance with the terms and conditions of the Contract.
- 3.2 The Supplier is deemed to accept the offer in the Order Form when the Buyer receives a copy of the Order Form signed by the Supplier.
- 3.3 The Supplier warrants and represents that its tender (if any) and all statements made and documents submitted as part of the procurement of Deliverables are and remain true and accurate.

4 WHAT NEEDS TO BE DELIVERED

4.1 All Deliverables

- 4.1.1 The Supplier must provide Deliverables:
- 4.1.1.1 in accordance with the Specification, the tender in Annex 4 – Supplier Tender (**Optional**) (where applicable) and the Contract;
 - 4.1.1.2 using reasonable skill and care;
 - 4.1.1.3 using Good Industry Practice;
 - 4.1.1.4 using its own policies, processes and internal quality control measures as long as they don't conflict with the Contract;
 - 4.1.1.5 on the dates agreed; and
 - 4.1.1.6 that comply with all Law.
- 4.1.2 The Supplier must provide Deliverables with a warranty of at least 90 days (or longer where the Supplier offers a longer warranty period to its Buyers) from Delivery against all obvious defects.

4.2 Goods clauses

- 4.2.1 All Goods delivered must be new, or as new if recycled, unused and of recent origin.
- 4.2.2 The Supplier transfers ownership of the Goods on completion of Delivery or payment for those Goods, whichever is earlier.
- 4.2.3 Risk in the Goods transfers to the Buyer on Delivery, but remains with the Supplier if the Buyer notices damage following Delivery and lets the Supplier know within 3 Working Days of Delivery.
- 4.2.4 The Supplier warrants that it has full and unrestricted ownership of the Goods at the time of transfer of ownership.
- 4.2.5 The Supplier must Deliver the Goods on the date and to the location specified in the Order Form, during the Buyer's working hours (unless otherwise specified in the Order Form).



- 4.2.6 The Supplier must provide sufficient packaging for the Goods to reach the point of Delivery safely and undamaged.
- 4.2.7 All deliveries must have a delivery note attached that specifies the order number, type and quantity of Goods.
- 4.2.8 The Supplier must provide all tools, information and instructions the Buyer needs to make use of the Goods.
- 4.2.9 The Supplier will notify the Buyer of any request that Goods are returned to it or the manufacturer after the discovery of safety issues or defects that might endanger health or hinder performance and shall indemnify the Buyer against the costs arising as a result of any such request.
- 4.2.10 The Buyer can cancel any order or part order of Goods which has not been Delivered. If the Buyer gives less than 14 days' notice then it will pay the Supplier's reasonable and proven costs already incurred on the cancelled order as long as the Supplier takes all reasonable endeavours to minimise these costs.
- 4.2.11 The Supplier must at its own cost repair, replace, refund or substitute (at the Buyer's option and request) any Goods that the Buyer rejects because they don't conform with clause 4.2. If the Supplier doesn't do this it will pay the Buyer's costs including repair or re-supply by a third party.
- 4.2.12 The Buyer will not be liable for any actions, claims, costs or expenses incurred by the Supplier or any third party during Delivery of the Goods unless and to the extent that it is caused by negligence or other wrongful act of the Buyer or its servant or agent. If the Buyer suffers or incurs any damage or injury (whether fatal or otherwise) occurring in the course of Delivery or installation then the Supplier shall indemnify the Buyer from any losses, charges, costs or expenses which arise as a result of or in connection with such damage or injury where it is attributable to any act or omission of the Supplier or any of its Subcontractors or Supplier Staff.

4.3 Services clauses

- 4.3.1 Late Delivery of the Services will be a default of the Contract.
- 4.3.2 The Supplier must co-operate with the Buyer and third party suppliers on all aspects connected with the delivery of the Services and ensure that Supplier Staff comply with any reasonable instructions including the Security Requirements (where any such requirements have been provided).
- 4.3.3 The Buyer must provide the Supplier with reasonable access to its premises at reasonable times for the purpose of supplying the Services
- 4.3.4 The Supplier must at its own risk and expense provide all equipment required to deliver the Services. Any equipment provided by the Buyer to the Supplier for supplying the Services remains the property of the Buyer and is to be returned to the Buyer on expiry or termination of the Contract.
- 4.3.5 The Supplier must allocate sufficient resources and appropriate expertise to the Contract.
- 4.3.6 The Supplier must take all reasonable care to ensure performance does not disrupt the Buyer's operations, employees or other contractors.
- 4.3.7 On completion of the Services, the Supplier is responsible for leaving the Buyer's premises in a clean, safe and tidy condition and making good any damage that it has caused to the Buyer's premises or property, other than fair wear and tear.
- 4.3.8 The Supplier must ensure all Services, and anything used to deliver the Services, are of good quality and free from defects.



- 4.3.9 The Buyer is entitled to withhold payment for partially or undelivered Services, but doing so does not stop it from using its other rights under the Contract.

5 PRICING AND PAYMENTS

- 5.1 In exchange for the Deliverables, the Supplier must invoice the Buyer for the charges in the Order Form.
- 5.2 All Charges:
- 5.2.1 exclude VAT, which is payable on provision of a valid VAT invoice; and
 - 5.2.2 include all costs and expenses connected with the supply of Deliverables.
- 5.3 The Buyer must pay the Supplier the charges:
- 5.3.1 within 30 days beginning with the day on which an invoice is received by the Buyer in respect of the sum, or
 - 5.3.2 if later, the day by which the payment falls due in accordance with the invoice, subject to the invoice being verified as valid and undisputed.
- 5.4 A Supplier invoice is only valid if it:
- 5.4.1 includes the minimum required information set out in Section 88(7) of the Procurement Act 2023;
 - 5.4.2 includes all appropriate references including the Purchase Order Number and other details reasonably requested by the Buyer; and
 - 5.4.3 includes a detailed breakdown of Deliverables which have been delivered.
- 5.5 If there is a dispute between the Parties as to the amount invoiced, the Buyer shall pay the undisputed amount. The Supplier shall not suspend the provision of the Deliverables unless the Supplier is entitled to terminate the Contract for a failure to pay undisputed sums in accordance with clause 11.6. Any disputed amounts shall be resolved through the dispute resolution procedure detailed in clause 35.
- 5.6 The Buyer may retain or set-off payment of any amount owed to it by the Supplier under this Contract or any other agreement between the Supplier and the Buyer if notice and reasons are provided.
- 5.7 The Supplier must ensure that all Subcontractors are paid, in full:
- 5.7.1 within 30 days beginning with the day on which an invoice is received by the Buyer in respect of the sum; or
 - 5.7.2 if later, the date by which the payment falls due in accordance with the invoice, subject to the invoice being verified as valid and undisputed.
- 5.8 If the invoice is not paid in accordance with the timescales in clause 5.7, the Buyer can publish the details of the late payment or non-payment.
- 5.9 Where any invoice does not conform to the Buyer's requirements set out in clause 5.4, or the Buyer disputes the invoice, the Buyer shall notify the Supplier without undue delay and the Supplier shall promptly issue a replacement invoice which shall comply with such requirements.

6 THE BUYER'S OBLIGATIONS TO THE SUPPLIER

- 6.1 If Supplier fails to comply with the Contract as a result of a Buyer Cause:
- 6.1.1 the Buyer cannot terminate the Contract under clause 11;



- 6.1.2 the Supplier is entitled to reasonable and proven additional expenses and to relief from liability under this Contract;
- 6.1.3 the Supplier is entitled to additional time needed to deliver the Deliverables; and
- 6.1.4 the Supplier cannot suspend the ongoing supply of Deliverables.

6.2 Clause 6.1 only applies if the Supplier:

- 6.2.1 gives notice to the Buyer within 10 Working Days of becoming aware;
- 6.2.2 demonstrates that the failure only happened because of the Buyer Cause; and
- 6.2.3 mitigated the impact of the Buyer Cause.

7 RECORD KEEPING AND REPORTING

- 7.1 The Supplier must ensure that suitably qualified representatives attend progress meetings with the Buyer and provide progress reports when specified in the Order Form.
- 7.2 The Supplier must keep and maintain full and accurate records and accounts on everything to do with the Contract for 7 years after the date of expiry or termination of the Contract and in accordance with the UK GDPR or the EU GDPR as the context requires.
- 7.3 The Supplier must allow any auditor appointed by the Buyer access to its premises to verify all contract accounts and records of everything to do with the Contract and provide copies for the Audit.
- 7.4 The Buyer or an auditor can Audit the Supplier.
- 7.5 During an Audit, the Supplier must provide information to the auditor and reasonable co-operation at their request.
- 7.6 The Parties will bear their own costs when an Audit is undertaken unless the Audit identifies a Material Breach by the Supplier, in which case the Supplier will repay the Buyer's reasonable costs in connection with the Audit.
- 7.7 If the Supplier is not providing any of the Deliverables, or is unable to provide them, it must immediately:
 - 7.7.1 tell the Buyer and give reasons;
 - 7.7.2 propose corrective action; and
 - 7.7.3 provide a deadline for completing the corrective action.
- 7.8 If the Buyer, acting reasonably, is concerned as to the financial stability of the Supplier such that it may impact on the continued performance of the Contract then the Buyer may:
 - 7.8.1 require that the Supplier provide to the Buyer (for its approval) a plan setting out how the Supplier will ensure continued performance of the Contract and the Supplier will make changes to such plan as reasonably required by the Buyer and once it is agreed then the Supplier shall act in accordance with such plan and report to the Buyer on demand; and
 - 7.8.2 if the Supplier fails to provide a plan or fails to agree any changes which are requested by the Buyer or fails to implement or provide updates on progress with the plan, terminate the Contract immediately for Material Breach (or on such date as the Buyer notifies) and the consequences of termination in clause 11.5.1 shall apply.
- 7.9 If there is a Material Breach, the Supplier must notify the Buyer within 3 Working Days of the Supplier becoming aware of the Material Breach. The Buyer may request that the Supplier provide a Rectification Plan within 10 Working Days of the Buyer's request alongside any additional documentation that the Buyer requires. Once such Rectification Plan is agreed between the



Parties (without the Buyer limiting its rights) the Supplier must immediately start work on the actions in the Rectification Plan at its own cost.

- 7.10 At the end of each Contract Year, at its own expense, the Supplier will provide a report to the Buyer setting out a summary of its compliance with clause 5.7, such report to be certified by the Supplier's Authorised Representative as being accurate and not misleading.

8 SUPPLIER STAFF

- 8.1 The Supplier Staff involved in the performance of the Contract must:
- 8.1.1 be appropriately trained and qualified;
 - 8.1.2 be vetted in accordance with the Buyer's staff vetting procedures as specified in the Order Form or in Annex 6 (*Security Requirements*) (if used); and
 - 8.1.3 comply with all conduct requirements when on the Buyer's premises.
- 8.2 Where the Buyer decides one of the Supplier's Staff isn't suitable to work on the Contract, the Supplier must replace them with a suitably qualified alternative.
- 8.3 The Supplier must provide a list of Supplier Staff needing to access the Buyer's premises and say why access is required.
- 8.4 The Supplier indemnifies the Buyer against all claims brought by any person employed or engaged by the Supplier caused by an act or omission of the Supplier or any Supplier Staff.
- 8.5 The Buyer indemnifies the Supplier against all claims brought by any person employed or engaged by the Buyer caused by an act or omission of the Buyer or any of the Buyer's employees, agents, consultants and contractors.
- 8.6 The Supplier shall use those persons nominated (if any) as Key Staff in the Order Form or otherwise notified as such by the Buyer to the Supplier in writing, following agreement to the same by the Supplier to provide the Deliverables and shall not remove or replace any of them unless:
- 8.6.1 requested to do so by the Buyer or the Buyer approves such removal or replacement (not to be unreasonably withheld or delayed);
 - 8.6.2 the person concerned resigns, retires or dies or is on parental or long-term sick leave; or
 - 8.6.3 the person's employment or contractual arrangement with the Supplier or any Subcontractor is terminated for material breach of contract by the employee.
- 8.7 The Supplier shall ensure that no person who discloses that they have a conviction that is relevant to the nature of the Contract, relevant to the work of the Buyer, or is of a type otherwise advised by the Buyer (each such conviction a "**Relevant Conviction**"), or is found by the Supplier to have a Relevant Conviction (whether as a result of a police check, a disclosure and barring service check or otherwise) is employed or engaged in the provision of any part of the Deliverables.

9 RIGHTS AND PROTECTION

- 9.1 The Supplier warrants and represents that:
- 9.1.1 it has full capacity and authority to enter into and to perform the Contract;
 - 9.1.2 the Contract is entered into by its authorised representative;
 - 9.1.3 it is a legally valid and existing organisation incorporated in the place it was formed;
 - 9.1.4 there are no known legal or regulatory actions or investigations before any court, administrative body or arbitration tribunal pending or threatened against it or its affiliates that might affect its ability to perform the Contract;



- 9.1.5 all necessary rights, authorisations, licences and consents (including in relation to IPRs) are in place to enable the Supplier to perform its obligations under the Contract and the Buyer to receive the Deliverables;
 - 9.1.6 it doesn't have any contractual obligations which are likely to have a material adverse effect on its ability to perform the Contract; and
 - 9.1.7 it is not impacted by an Insolvency Event.
- 9.2 The warranties and representations in clause 3.3 and clause 9.1 are repeated each time the Supplier provides Deliverables under the Contract.
- 9.3 The Supplier indemnifies the Buyer against each of the following:
 - 9.3.1 wilful misconduct of the Supplier, any of its Subcontractor and/or Supplier Staff that impacts the Contract; and
 - 9.3.2 non-payment by the Supplier of any tax or National Insurance.
- 9.4 If the Supplier becomes aware of a representation or warranty made in relation to the Contract that becomes untrue or misleading, it must immediately notify the Buyer.
- 9.5 All third party warranties and indemnities covering the Deliverables must be assigned for the Buyer's benefit by the Supplier for free.
- 10 INTELLECTUAL PROPERTY RIGHTS ("IPRS")**
- 10.1 Each Party keeps ownership of its own Existing IPRs. The Supplier gives the Buyer a non-exclusive, perpetual, royalty-free, irrevocable, transferable, sub-licensable worldwide licence to use, copy and adapt the Supplier's Existing IPR to enable the Buyer and its sub-licensees to both:
 - 10.1.1 receive and use the Deliverables; and
 - 10.1.2 use the New IPR.

The termination or expiry of the Contract does not terminate any licence granted under this clause 10.
- 10.2 Any New IPR created under the Contract is owned by the Buyer. The Buyer gives the Supplier a royalty-free, non-exclusive, non-transferable licence to use, copy, and adapt any Existing IPRs and the New IPR which the Supplier reasonably requires for the purpose of fulfilling its obligations during the Term and commercially exploiting the New IPR developed under the Contract. This licence is sub-licensable to a Subcontractor for the purpose of enabling the Supplier to fulfil its obligations under the Contract, and in that case the Subcontractor must enter into a confidentiality undertaking with the Supplier on the same terms as set out in clause 15 (What you must keep confidential).
- 10.3 Unless otherwise agreed in writing, the Supplier and the Buyer will record any New IPR and keep this record updated throughout the Term.
- 10.4 Where a Party acquires ownership of intellectual property rights incorrectly under this Contract, it must do everything reasonably necessary to complete a transfer assigning them in writing to the other Party on request and at its own cost.
- 10.5 Neither Party has the right to use the other Party's intellectual property rights, including any use of the other Party's names, logos or trademarks, except as provided in this clause 10 or otherwise agreed in writing.
- 10.6 If any claim is made against the Buyer for actual or alleged infringement of a third party's intellectual property arising out of, or in connection with, the supply or use of the Deliverables (an **"IPR Claim"**), then the Supplier indemnifies the Buyer against all losses, damages, costs or expenses (including professional fees and fines) incurred as a result of the IPR Claim.



- 10.7 If an IPR Claim is made or anticipated, the Supplier must at its own option and expense, either:
- 10.7.1 obtain for the Buyer the rights in clause 10.1 without infringing any third-party intellectual property rights; and
 - 10.7.2 replace or modify the relevant item with substitutes that don't infringe intellectual property rights without adversely affecting the functionality or performance of the Deliverables.
 - 10.7.3 If the Supplier is not able to resolve the IPR Claim to the Buyer's reasonable satisfaction within a reasonable time, the Buyer may give written notice that it terminates the Contract from the date set out in the notice, or where no date is given in the notice, the date of the notice. On termination, the consequences of termination in clause 11.5.1 shall apply.
- 10.8 The Supplier shall not use in the Delivery of the Deliverables any Third Party IPR unless:
- 10.8.1 the Buyer gives its approval to do so; and
 - 10.8.2 one of the following conditions applies:
 - 10.8.2.1 the owner or an authorised licensor of the relevant Third Party IPR has granted the Buyer a direct licence that provides the Buyer with the rights in clause 10.1; or
 - 10.8.2.2 if the Supplier cannot, after commercially reasonable endeavours, obtain for the Buyer a direct licence to the Third Party IPR as set out in clause 10.8.2.1:
 - (a) the Supplier provides the Buyer with details of the licence terms it can obtain and the identity of those licensors;
 - (b) the Buyer agrees to those licence terms; and
 - (c) the owner or authorised licensor of the Third Party IPR grants a direct licence to the Buyer on those terms; or
 - 10.8.2.3 the Buyer approves in writing, with reference to the acts authorised and the specific intellectual property rights involved.
- 10.9 In spite of any other provisions of the Contract and for the avoidance of doubt, award of this Contract by the Buyer and the ordering of any Deliverable under it, does not constitute an authorisation by the Crown under Sections 55 and 56 of the Patents Act 1977, Section 12 of the Registered Designs Act 1949 or Sections 240 – 243 of the Copyright, Designs and Patents Act 1988.
- 11 ENDING THE CONTRACT**
- 11.1 The Contract takes effect on the Start Date and ends on the earlier of the Expiry Date or termination of the Contract, or earlier if required by Law.
- 11.2 The Buyer can extend the Contract where set out in the Order Form in accordance with the terms in the Order Form.
- 11.3 Ending the Contract without a reason**
- The Buyer has the right to terminate the Contract at any time without reason or liability by giving the Supplier not less than 90 days' written notice, and if it's terminated clause 11.6.2 applies.



11.4 When the Buyer can end the Contract

- 11.4.1 If any of the following events happen, the Buyer has the right to immediately terminate its Contract by issuing a termination notice in writing to the Supplier and the consequences of termination in clause 11.5.1 shall apply:
- 11.4.1.1 there's a Supplier Insolvency Event;
 - 11.4.1.2 the Supplier is in Material Breach of the Contract;
 - 11.4.1.3 there's a change of control (within the meaning of section 450 of the Corporation Tax Act 2010) of the Supplier which isn't pre-approved by the Buyer in writing;
 - 11.4.1.4 the Supplier or its affiliates embarrass or bring the Buyer into disrepute or diminish the public trust in them; or
 - 11.4.1.5 the Supplier fails to comply with its legal obligations in the fields of environmental, social or employment Law when providing the Deliverables.

11.5 What happens if the Contract ends

- 11.5.1 Where the Buyer terminates the Contract under clause 10.7.3, 11.4, 7.8.2, 32.4 or Paragraph 8 of Part B Joint Controller Agreement (*Optional*) of Annex 1 – Processing Personal Data (if used), all of the following apply:
- 11.5.1.1 the Supplier is responsible for the Buyer's reasonable costs of procuring replacement Deliverables for the rest of the term of the Contract;
 - 11.5.1.2 the Buyer's payment obligations under the terminated Contract stop immediately;
 - 11.5.1.3 accumulated rights of the Parties are not affected;
 - 11.5.1.4 the Supplier must promptly delete or return the Government Data other than Government Data (i) that is Personal Data in respect of which the Supplier is a Controller; (ii) in respect of which the Supplier has rights to hold the Government Data independently of this Contract; and (iii) where required to retain copies by Law;
 - 11.5.1.5 the Supplier must promptly return any of the Buyer's property provided under the Contract;
 - 11.5.1.6 the Supplier must, at no cost to the Buyer, give all reasonable assistance to the Buyer and any incoming supplier and co-operate fully in the handover and re-procurement; and
 - 11.5.1.7 the Supplier must repay to the Buyer all the Charges that it has been paid in advance for Deliverables that it has not provided as at the date of termination or expiry.
- 11.5.2 The following clauses survive the expiry or termination of the Contract: 1, 4.2.9, 5, 7, 8.4, 10, 11.5, 11.6.2, 12, 14, 15, 16, 18, 19, 22, 31.2.2, 35 and 36 and any clauses which are expressly or by implication intended to continue.

11.6 When the Supplier can end the Contract and what happens when the contract ends (Buyer and Supplier termination)

- 11.6.1 The Supplier can issue a reminder notice if the Buyer does not pay an undisputed invoice on time. The Supplier can terminate the Contract if the Buyer fails to pay an undisputed invoiced sum due and worth over 10% of the total Contract value or £1,000, whichever is the lower, within 30 days of the date of the reminder notice.



- 11.6.2 Where the Buyer terminates the Contract in accordance with clause 11.3 or the Supplier terminates the Contract under clause 11.6 or 23.4:
- 11.6.2.1 the Buyer must promptly pay all outstanding charges incurred by the Supplier;
- 11.6.2.2 the Buyer must pay the Supplier reasonable committed and unavoidable losses as long as the Supplier provides a fully itemised and costed schedule with evidence - the maximum value of this payment is limited to the total sum payable to the Supplier if the Contract had not been terminated; and
- 11.6.2.3 clauses 11.5.1.2 to 11.5.1.7 apply.
- 11.6.3 The Supplier also has the right to terminate the Contract in accordance with clauses 20.3 and 23.4.

11.7 Partially ending and suspending the Contract

- 11.7.1 Where the Buyer has the right to terminate the Contract it can terminate or suspend (for any period), all or part of it. If the Buyer suspends the Contract it can provide the Deliverables itself or buy them from a third party.
- 11.7.2 The Buyer can only partially terminate or suspend the Contract if the remaining parts of it can still be used to effectively deliver the intended purpose.
- 11.7.3 The Parties must agree (in accordance with clause 25) any necessary variation required by clause 11.7, but the Supplier may not either:
- 11.7.3.1 reject the variation; or
- 11.7.3.2 increase the Charges, except where the right to partial termination is under clause 11.3.
- 11.7.4 The Buyer can still use other rights available, or subsequently available to it if it acts on its rights under clause 11.7.

12 HOW MUCH YOU CAN BE HELD RESPONSIBLE FOR

- 12.1 Each Party's total aggregate liability under or in connection with the Contract (whether in tort, contract or otherwise) is no more than 125% of the Charges paid or payable to the Supplier.
- 12.2 No Party is liable to the other for:
- 12.2.1 any indirect losses; and/or
- 12.2.2 loss of profits, turnover, savings, business opportunities or damage to goodwill (in each case whether direct or indirect).
- 12.3 In spite of clause 12.1, neither Party limits or excludes any of the following:
- 12.3.1 its liability for death or personal injury caused by its negligence, or that of its employees, agents or Subcontractors;
- 12.3.2 its liability for bribery or fraud or fraudulent misrepresentation by it or its employees; or
- 12.3.3 any liability that cannot be excluded or limited by Law.
- 12.4 In spite of clause 12.1, the Supplier does not limit or exclude its liability for any indemnity given under clauses 8.4, 9.3.2, 10.6, or 31.2.2.
- 12.5 In spite of clause 12.1, the Buyer does not limit or exclude its liability for any indemnity given under clause 8.5.



- 12.6 In spite of clause 12.1, but subject to clauses 12.2 and 12.3, the Supplier's total aggregate liability in each Contract Year under clause 14.5.4 is no more than the Data Protection Liability Cap.
- 12.7 Each Party must use all reasonable endeavours to mitigate any loss or damage which it suffers under or in connection with the Contract, including any indemnities.
- 12.8 If more than one Supplier is party to the Contract, each Supplier Party is fully responsible for both their own liabilities and the liabilities of the other Suppliers.

13 OBEYING THE LAW

- 13.1 The Supplier, in connection with provision of the Deliverables:
- 13.1.1 is expected to meet and have its Subcontractors meet the standards set out in the Supplier Code of Conduct:
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/1163536/Supplier_Code_of_Conduct_v3.pdf) as such Code of Conduct may be updated from time to time, and such other sustainability requirements as set out in the Order Form. The Buyer also expects to meet this Code of Conduct;
 - 13.1.2 must comply with the provisions of the Official Secrets Acts 1911 to 1989 and section 182 of the Finance Act 1989;
 - 13.1.3 must support the Buyer in fulfilling its Public Sector Equality duty under section 149 of the Equality Act 2010;
 - 13.1.4 must comply with the model contract terms contained in (a) to (l) of Annex C of the guidance to PPN 009 (Tackling Modern Slavery in Government Supply Chains), as such clauses may be amended or updated from time to time; and
 - 13.1.5 meet the applicable Government Buying Standards applicable to Deliverables which can be found online at: <https://www.gov.uk/government/collections/sustainable-procurement-the-government-buying-standards-gbs>, as updated from time to time.
- 13.2 The Supplier indemnifies the Buyer against any costs resulting from any default by the Supplier relating to any applicable Law to do with the Contract.
- 13.3 The Supplier must appoint a compliance officer who must be responsible for ensuring that the Supplier complies with Law, clause 13.1 and clauses 27 to 33.

14 DATA PROTECTION AND SECURITY

- 14.1 The Supplier must not remove any ownership or security notices in or relating to the Government Data.
- 14.2 The Supplier must ensure that any Supplier, Subcontractor, or Sub-processor system holding any Government Data, including back-up data, is a secure system that complies with the Security Requirements (including Annex 6 (*Security Management*) (if used)) or as otherwise provided in writing by the Buyer (where any such requirements have been provided).
- 14.3 If at any time the Supplier suspects or has reason to believe that the Government Data is corrupted, lost or sufficiently degraded, then the Supplier must immediately notify the Buyer and suggest remedial action.
- 14.4 If the Government Data is any of (i) corrupted, (ii) lost or (iii) sufficiently degraded, in each case as a result of the Supplier's Default, so as to be unusable the Buyer may either or both:
- 14.4.1 tell the Supplier (at the Supplier's expense) to restore or get restored Government Data as soon as practical but no later than 5 Working Days from the date that the Buyer receives notice, or the Supplier finds out about the issue, whichever is earlier; and/or



- 14.4.2 restore the Government Data itself or using a third party and shall be repaid by the Supplier any reasonable expenses incurred in doing so.

14.5 The Supplier:

- 14.5.1 must, subject to the Security Requirements (if any), provide the Buyer with all Government Data in an agreed format (provided it is secure and readable) within 10 Working Days of a written request;
- 14.5.2 must have documented processes to guarantee prompt availability of Government Data if the Supplier stops trading;
- 14.5.3 must, subject to the Security Requirements (if any), securely erase (using a deletion method that ensures that even a determined expert using specialist techniques can recover only a small fraction of the data deleted) all Government Data and any copies it or a Subcontractor holds when asked to do so by the Buyer unless required by Law to retain it, other than in relation to Government Data in respect of which the Supplier is a Controller or which the Supplier has rights to hold the Government Data independently of this Contract; and
- 14.5.4 indemnifies the Buyer against any and all losses incurred if the Supplier breaches clause 14 or any Data Protection Legislation.

14.6 The Parties acknowledge that for the purposes of the Data Protection Legislation, the nature of the activity carried out by each of them in relation to their respective obligations under the Contract dictates the status of each party under the DPA 2018. A Party may act as:

- 14.6.1 "Controller" in respect of the other Party who is "Processor";
- 14.6.2 "Processor" in respect of the other Party who is "Controller";
- 14.6.3 "Joint Controller" with the other Party;
- 14.6.4 "Independent Controller" of the Personal Data where the other Party is also "Controller",

in respect of certain Personal Data under the Contract and shall specify in Part A Authorised Processing Template of Annex 1 – Processing Personal Data which scenario they think shall apply in each situation.

14.7 Where one Party is Controller and the other Party its Processor

- 14.7.1 Where a Party is a Processor, the only processing that the Processor is authorised to do is listed in Part A Authorised Processing Template of Annex 1 – Processing Personal Data by the Controller and may not be determined by the Processor. The term "processing" and any associated terms are to be read in accordance with Article 4 of the UK GDPR and EU GDPR (as applicable).
- 14.7.2 The Processor must notify the Controller immediately if it thinks the Controller's instructions breach the Data Protection Legislation.
- 14.7.3 The Processor must give all reasonable assistance to the Controller in the preparation of any Data Protection Impact Assessment before starting any processing, which may include, at the discretion of the Controller:
 - 14.7.3.1 a systematic description of the expected processing and its purpose;
 - 14.7.3.2 the necessity and proportionality of the processing operations;
 - 14.7.3.3 the risks to the rights and freedoms of Data Subjects; and
 - 14.7.3.4 the intended measures to address the risks, including safeguards, security measures and mechanisms to protect Personal Data and assurance that those measures comply with any Security Requirements.



- 14.7.4 The Processor must, in relation to any Personal Data processed under this Contract:
- 14.7.4.1 process that Personal Data only in accordance with this clause 14, Part A Authorised Processing Template of Annex 1 – Processing Personal Data and Annex 6 (*Security Management*) (if used), unless the Processor is required to do otherwise by Law. If lawful to notify the Controller, the Processor must promptly notify the Controller if the Processor is otherwise required to process Personal Data by Law before processing it.
 - 14.7.4.2 put in place appropriate Protective Measures to protect against a Data Loss Event which must be approved by the Controller.
 - 14.7.4.3 ensure that:
 - (a) the Processor Personnel do not process Personal Data except in accordance with clause 14, Part A Authorised Processing Template of Annex 1 – Processing Personal Data and Annex 6 (*Security Management*) (if used);
 - (b) it uses the Buyer's staff vetting procedures to ensure the reliability and integrity of any Processor Personnel who have access to the Personal Data and ensure that they:
 - (i) are aware of and comply with the Processor's duties under this clause 14 and Annex 6 (*Security Management*) (if used);
 - (ii) are subject to appropriate confidentiality undertakings with the Processor or any Sub-processor;
 - (iii) are informed of the confidential nature of the Personal Data and do not provide any of the Personal Data to any third party unless directed in writing to do so by the Controller or as otherwise allowed by the Contract; and
 - (iv) have undergone adequate training in the use, care, protection and handling of Personal Data.
 - (c) the Processor must not transfer Personal Data outside of the UK and/or the EEA unless the prior written consent of the Controller has been obtained and the following conditions are fulfilled:
 - (i) the transfer is in accordance with Article 45 of the UK GDPR (or section 74A of DPA 2018) and/or the transfer is in accordance with Article 45 of the EU GDPR (where applicable), provided that if the destination country of a transfer is the United States:
 - (A) the Supplier shall ensure that prior to the transfer of any Personal Data to the United States relying on this adequacy (including to any United States-based Subcontractors and/or Subprocessors), the Supplier (and/or the applicable Subcontractor and/or Subprocessor) must be self-certified and continue to be self-certified on the US Data Privacy Framework;



- (B) the Supplier shall notify the Buyer immediately if there are any, or there are reasonable grounds to believe there may be any, changes in respect of their and/or their Subcontractor's or Subprocessor's position on the US Data Privacy Framework (for example if that entity ceases to be certified or is at risk of being so, or there is a strong likelihood of a competent court finding the US Data Privacy Framework unlawful), and the Supplier must then take all appropriate steps to remedy the certification and/or put in place alternative data transfer mechanisms in compliance with this Paragraph 14.7.4.3(c)(i); and
- (C) in the event that the Supplier (and/or the applicable Subcontractor or Subprocessor):
 - (1) ceases to be certified on the US Data Privacy Framework and the Supplier does not put in place the alternative data transfer mechanisms required for compliance with this Paragraph 14.7.4.3(c)(i);
 - (2) the US Data Privacy Framework is no longer available and the Supplier does not put in place the alternative data transfer mechanisms required for compliance with this Paragraph 14.7.4.3(c)(i); and/or
 - (3) fails to notify the Buyer of any changes to its certification status in accordance with Paragraph 14.7.4.3(c)(i)(B) above,the Buyer shall have the right to terminate this Contract with immediate effect; or
- (d) the Controller or the Processor has provided appropriate safeguards in relation to the transfer (whether in accordance with UK GDPR Article 46 or section 75 of the DPA 2018) and/or the transfer is in accordance with Article 46 of the EU GDPR (where applicable) as determined by the Controller which could include relevant parties entering into:
 - (i) where the transfer is subject to UK GDPR:
 - (A) the International Data Transfer Agreement (the "**IDTA**"), as published by the Information Commissioner's Office from time to time under section 119A(1) of the DPA 2018 as well as any additional measures determined by the Controller;
 - (B) the European Commission's Standard Contractual Clauses per decision 2021/914/EU or such updated version of such Standard Contractual Clauses as are published by the European Commission from time to time ("**EU SCCs**"), together with the UK International Data Transfer Agreement Addendum to the EU SCCs (the "**Addendum**") as published by the Information Commissioner's Office from time to time; and/or
 - (ii) where the transfer is subject to EU GDPR, the EU SCCs,



as well as any additional measures determined by the Controller being implemented by the importing party;

- (e) the Data Subject has enforceable rights and effective legal remedies when transferred;
- (f) the Processor meets its obligations under the Data Protection Legislation by providing an adequate level of protection to any Personal Data that is transferred; and
- (g) the Processor complies with the Controller's reasonable prior instructions about the processing of the Personal Data.

- 14.7.5 The Processor must at the written direction of the Controller, delete or return Personal Data (and any copies of it) to the Controller on termination of the Contract unless the Processor is required by Law to retain the Personal Data.
- 14.7.6 The Processor must notify the Controller immediately if it:
- 14.7.6.1 receives a Data Subject Access Request (or purported Data Subject Access Request);
 - 14.7.6.2 receives a request to rectify, block or erase any Personal Data;
 - 14.7.6.3 receives any other request, complaint or communication relating to either Party's obligations under the Data Protection Legislation;
 - 14.7.6.4 receives any communication from the Information Commissioner or any other regulatory authority in connection with Personal Data processed under this Contract;
 - 14.7.6.5 receives a request from any third Party for disclosure of Personal Data where compliance with the request is required or claims to be required by Law; and
 - 14.7.6.6 becomes aware of a Data Loss Event.
- 14.7.7 Any requirement to notify under clause 14.7.6 includes the provision of further information to the Controller in stages as details become available.
- 14.7.8 The Processor must promptly provide the Controller with full assistance in relation to any Party's obligations under Data Protection Legislation and any complaint, communication or request made under clause 14.7.6. This includes giving the Controller:
- 14.7.8.1 full details and copies of the complaint, communication or request;
 - 14.7.8.2 reasonably requested assistance so that it can comply with a Data Subject Access Request within the relevant timescales in the Data Protection Legislation;
 - 14.7.8.3 any Personal Data it holds in relation to a Data Subject on request;
 - 14.7.8.4 assistance that it requests following any Data Loss Event; and
 - 14.7.8.5 assistance that it requests relating to a consultation with, or request from, the Information Commissioner's Office or any other regulatory authority.
- 14.7.9 The Processor must maintain full, accurate records and information to show it complies with this clause 14. This requirement does not apply where the Processor employs fewer than 250 staff, unless either the Controller determines that the processing:
- 14.7.9.1 is not occasional;



- 14.7.9.2 includes special categories of data as referred to in Article 9(1) of the UK GDPR or Personal Data relating to criminal convictions and offences referred to in Article 10 of the UK GDPR; or
 - 14.7.9.3 is likely to result in a risk to the rights and freedoms of Data Subjects.
- 14.7.10 The Parties shall designate a Data Protection Officer if required by the Data Protection Legislation.
- 14.7.11 Before allowing any Subprocessor to process any Personal Data, the Processor must:
 - 14.7.11.1 notify the Controller in writing of the intended Subprocessor and processing;
 - 14.7.11.2 obtain the written consent of the Controller;
 - 14.7.11.3 enter into a written contract with the Sub-processor so that this clause 14 applies to the Sub-processor; and
 - 14.7.11.4 provide the Controller with any information about the Sub-processor that the Controller reasonably requires.
- 14.7.12 The Processor remains fully liable for all acts or omissions of any Sub-processor.
- 14.7.13 The Parties agree to take account of any guidance issued by the Information Commissioner's Office or any other regulatory authority.

14.8 Joint Controllers of Personal Data

In the event that the Parties are Joint Controllers in respect of Personal Data under the Contract, the Parties shall implement paragraphs that are necessary to comply with UK GDPR Article 26 based on the terms set out in Part B Joint Controller Agreement (*Optional*) of Annex 1 – Processing Personal Data.

14.9 Independent Controllers of Personal Data

In the event that the Parties are Independent Controllers in respect of Personal Data under the Contract, the terms set out in Part C Independent Controllers (*Optional*) of Annex 1 – Processing Personal Data shall apply to this Contract.

15 WHAT YOU MUST KEEP CONFIDENTIAL

- 15.1 Each Party must:
 - 15.1.1 keep all Confidential Information it receives confidential and secure;
 - 15.1.2 not disclose, use or exploit the disclosing Party's Confidential Information without the disclosing Party's prior written consent, except for the purposes anticipated under the Contract; and
 - 15.1.3 immediately notify the disclosing Party if it suspects unauthorised access, copying, use or disclosure of the Confidential Information.
- 15.2 In spite of clause 15.1, a Party may disclose Confidential Information which it receives from the disclosing Party in any of the following instances:
 - 15.2.1 where disclosure is required by applicable Law if the recipient Party notifies the disclosing Party of the full circumstances, the affected Confidential Information and extent of the disclosure;
 - 15.2.2 if the recipient Party already had the information without obligation of confidentiality before it was disclosed by the disclosing Party;
 - 15.2.3 if the information was given to it by a third party without obligation of confidentiality;



- 15.2.4 if the information was in the public domain at the time of the disclosure;
 - 15.2.5 if the information was independently developed without access to the disclosing Party's Confidential Information;
 - 15.2.6 on a confidential basis, to its auditors or for the purposes of regulatory requirements;
 - 15.2.7 on a confidential basis, to its professional advisers on a need-to-know basis; and
 - 15.2.8 to the Serious Fraud Office where the recipient Party has reasonable grounds to believe that the disclosing Party is involved in activity that may be a criminal offence under the Bribery Act 2010.
- 15.3 The Supplier may disclose Confidential Information on a confidential basis to Supplier Staff on a need-to-know basis to allow the Supplier to meet its obligations under the Contract. The Supplier shall remain responsible at all times for compliance with the confidentiality obligations set out in this Contract by the persons to whom disclosure has been made.
- 15.4 The Buyer may disclose Confidential Information in any of the following cases:
- 15.4.1 on a confidential basis to the employees, agents, consultants and contractors of the Buyer;
 - 15.4.2 on a confidential basis to any Crown Body, any successor body to a Crown Body or any company that the Buyer transfers or proposes to transfer all or any part of its business to;
 - 15.4.3 if the Buyer (acting reasonably) considers disclosure necessary or appropriate to carry out its public functions;
 - 15.4.4 where requested by Parliament; and
 - 15.4.5 under clauses 5.8 and 16.
- 15.5 For the purposes of clauses 15.2 to 15.4 references to disclosure on a confidential basis means disclosure under a confidentiality agreement or arrangement including terms as strict as those required in clause 15.
- 15.6 Transparency Information and any information which is disclosed under clause 16 is not Confidential Information.
- 15.7 The Supplier must not make any press announcement or publicise the Contract or any part of it in any way, without the prior written consent of the Buyer and must take all reasonable endeavours to ensure that Supplier Staff do not either.

16 WHEN YOU CAN SHARE INFORMATION

- 16.1 The Supplier must tell the Buyer within 48 hours if it receives a Request For Information.
- 16.2 In accordance with a reasonable timetable and in any event within 5 Working Days of a request from the Buyer, at no additional cost, the Supplier must give the Buyer full co-operation and information needed so the Buyer can:
- 16.2.1 comply with any Request For Information; and
 - 16.2.2 comply with any of its obligations in relation to publishing Transparency Information.
- 16.3 Any such co-operation and/or information from the Supplier shall be provided at no additional cost.
- 16.4 To the extent that it is allowed and practical to do so, the Buyer will use reasonable endeavours to notify the Supplier of a Request For Information and may talk to the Supplier to help it decide whether to publish information under clause 16. However, the extent, content and format of the disclosure shall be decided by the Buyer, in its sole discretion.



17 INSURANCE

- 17.1 The Supplier shall ensure it has adequate insurance cover for this Contract.

18 INVALID PARTS OF THE CONTRACT

- 18.1 If any provision or part-provision of this Contract is or becomes invalid, illegal or unenforceable for any reason, such provision or part-provision shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this Contract. The provisions incorporated into the Contract are the entire agreement between the Parties. The Contract replaces all previous statements, or agreements whether written or oral. No other provisions apply.

19 OTHER PEOPLE'S RIGHTS IN THE CONTRACT

- 19.1 Subject to clause 19.2, no third parties may use the Contracts (Rights of Third Parties) Act ("**CRTPA**") to enforce any term of the Contract unless stated (referring to CRTPA) in the Contract. This does not affect third party rights and remedies that exist independently from CRTPA.
- 19.2 Clauses 5.7, 24.4 and 24.5 confer benefits on persons named or identified in such provisions other than the Parties (each such person a "**Third Party Beneficiary**") and are intended to be enforceable by Third Parties Beneficiaries by virtue of the CRTPA.

20 CIRCUMSTANCES BEYOND YOUR CONTROL

- 20.1 Any Party affected by a Force Majeure Event is excused from performing its obligations under the Contract while the inability to perform continues, if it both:
- 20.1.1 provides written notice to the other Party; and
 - 20.1.2 uses all reasonable measures practical to reduce the impact of the Force Majeure Event.
- 20.2 Any failure or delay by the Supplier to perform its obligations under the Contract that is due to a failure or delay by an agent, Subcontractor and/or Supplier Staff will only be considered a Force Majeure Event if that third party is itself prevented from complying with an obligation to the Supplier due to a Force Majeure Event.
- 20.3 Either Party can partially or fully terminate the Contract if the provision of the Deliverables is materially affected by a Force Majeure Event which lasts for 90 days continuously and the consequences of termination in clauses 11.5.1.2 to 11.5.1.7 shall apply.
- 20.4 Where a Party terminates under clause 20.3:
- 20.4.1 each Party must cover its own losses; and
 - 20.4.2 clauses 11.5.1.2 to 11.5.1.7 apply.

21 RELATIONSHIPS CREATED BY THE CONTRACT

- 21.1 The Contract does not create a partnership, joint venture or employment relationship. The Supplier must represent themselves accordingly and ensure others do so.

22 GIVING UP CONTRACT RIGHTS

- 22.1 A partial or full waiver or relaxation of the terms of the Contract is only valid if it is stated to be a waiver in writing to the other Party.



23 TRANSFERRING RESPONSIBILITIES

- 23.1 The Supplier cannot assign, novate or in any other way dispose of the Contract or any part of it without the Buyer's written consent.
- 23.2 The Buyer can assign, novate or transfer its Contract or any part of it to any Crown Body, public or private sector body which performs the functions of the Buyer.
- 23.3 When the Buyer uses its rights under clause 23.2 the Supplier must enter into a novation agreement in the form that the Buyer specifies.
- 23.4 The Supplier can terminate the Contract novated under clause 23.2 to a private sector body that is experiencing an Insolvency Event.
- 23.5 The Supplier remains responsible for all acts and omissions of the Supplier Staff as if they were its own.

24 SUPPLY CHAIN

- 24.1 The Supplier cannot sub-contract the Contract or any part of it without the Buyer's prior written consent. The Supplier shall provide the Buyer with the name of any Subcontractor the Supplier proposes to engage for the purposes of the Contract. The decision of the Buyer to consent or not will not be unreasonably withheld or delayed. If the Buyer does not communicate a decision to the Supplier within 10 Working Days of the request for consent then its consent will be deemed to have been given. The Buyer may reasonably withhold its consent to the appointment of a Subcontractor if it considers that:
 - 24.1.1 the appointment of a proposed Subcontractor may prejudice the provision of the Deliverables or may be contrary to its interests;
 - 24.1.2 the proposed Subcontractor is unreliable and/or has not provided reliable goods and or reasonable services to its other customers; and/or
 - 24.1.3 the proposed Subcontractor employs unfit persons.
- 24.2 If the Buyer asks the Supplier for details about Subcontractors, the Supplier must provide details of all such Subcontractors at all levels of the supply chain including:
 - 24.2.1 their name;
 - 24.2.2 the scope of their appointment; and
 - 24.2.3 the duration of their appointment.
- 24.3 The Supplier must exercise due skill and care when it selects and appoints Subcontractors.
- 24.4 For Sub-Contracts in the Supplier's supply chain entered into wholly or substantially for the purpose of performing or contributing to the performance of the whole or any part of this Contract:
 - 24.4.1 where such Sub-Contracts are entered into after the Start Date, the Supplier will ensure that they all contain provisions that; or
 - 24.4.2 where such Sub-Contracts are entered into before the Start Date, the Supplier will take all reasonable endeavours to ensure that they all contain provisions that:
 - 24.4.2.1 allow the Supplier to terminate the Sub-Contract if the Subcontractor fails to comply with its obligations in respect of environmental, social or employment Law; and
 - 24.4.2.2 require that all Subcontractors are paid:
 - (a) before the end of the period of 30 days beginning with the day on which an invoice is received by the Supplier or other party in respect of the sum; or



- (b) if later, the date by which the payment falls due in accordance with the invoice,

subject to the invoice being verified by the party making payment as valid and undisputed;

- 24.4.2.3 require the party receiving goods or services under the contract to consider and verify invoices under that contract in a timely fashion and notify the Subcontractor without undue delay if it considers the invoice invalid or it disputes the invoice; and

- 24.4.2.4 allow the Buyer to publish the details of the late payment or non-payment if this 30 day limit is exceeded.

- 24.5 The Supplier must ensure that a term equivalent to Clause 24.4 is included in each Sub-Contract in its supply chain, such that each Subcontractor is obliged to include those terms in any of its own Sub-Contracts in the supply chain for the delivery of this Contract. References to the "Supplier" and "Subcontractor", in clause 15.14(i) are to be replaced with references to the respective Subcontractors who are parties to the relevant contract.

- 24.6 At the Buyer's request, the Supplier must terminate any Sub-Contracts in any of the following events:

- 24.6.1 there is a change of control within the meaning of Section 450 of the Corporation Tax Act 2010 of a Subcontractor which isn't pre-approved by the Buyer in writing;
- 24.6.2 the acts or omissions of the Subcontractor have caused or materially contributed to a right of termination under clause 11.4;
- 24.6.3 a Subcontractor or its Affiliates embarrasses or brings into disrepute or diminishes the public trust in the Buyer; and/or
- 24.6.4 the Subcontractor fails to comply with its obligations in respect of environmental, social or employment Law.

- 24.7 The Supplier is responsible for all acts and omissions of its Subcontractors and those employed or engaged by them as if they were its own.

25 CHANGING THE CONTRACT

- 25.1 Either Party can request a variation to the Contract which is only effective if agreed in writing and signed by both Parties. The Buyer is not required to accept a variation request made by the Supplier.

26 HOW TO COMMUNICATE ABOUT THE CONTRACT

- 26.1 All notices under the Contract shall be in writing and be served by e-mail unless it is not practicable to do so. An e-mail is effective at 9am on the first Working Day after sending unless an error message is received.
- 26.2 If it is not practicable for a notice to be served by e-mail in accordance with clause 26.1, notices can be served by means of personal delivery or Prepaid, Royal Mail Signed For™ 1st Class or other prepaid, next Working Day service providing proof of delivery. If either of these options are used to serve a notice, such notices are considered effective on the Working Day of delivery as long as they're delivered before 5:00pm on a Working Day. Otherwise, the notice is effective on the next Working Day.
- 26.3 Notices to the Buyer or Supplier must be sent to their e-mail address (or address, where e-mail is not practicable) in the Order Form.



26.4 This clause does not apply to the service of legal proceedings or any documents in any legal action, arbitration or dispute resolution.

27 DEALING WITH CLAIMS

27.1 If a Beneficiary becomes aware of any Claim, then it must notify the Indemnifier as soon as reasonably practical.

27.2 at the Indemnifier's cost the Beneficiary must:

27.2.1 allow the Indemnifier to conduct all negotiations and proceedings to do with a Claim;

27.2.2 give the Indemnifier reasonable assistance with the Claim if requested; and

27.2.3 not make admissions about the Claim without the prior written consent of the Indemnifier which cannot be unreasonably withheld or delayed.

27.3 The Indemnifier must:

27.3.1 consider and defend the Claim diligently and in a way that does not damage the Beneficiary's reputation; and

27.3.2 not settle or compromise any Claim without the Beneficiary's prior written consent which it must not unreasonably withhold or delay.

28 EQUALITY, DIVERSITY AND HUMAN RIGHTS

28.1 The Supplier must follow all applicable employment and equality Law when they perform their obligations under the Contract, including:

28.1.1 protections against discrimination on the grounds of race, sex, gender reassignment, religion or belief, disability, sexual orientation, pregnancy, maternity, age or otherwise; and

28.1.2 any other requirements and instructions which the Buyer reasonably imposes related to equality Law.

28.2 The Supplier must use all reasonable endeavours, and inform the Buyer of the steps taken, to prevent anything that is considered to be unlawful discrimination by any court or tribunal, or the Equality and Human Rights Commission (or any successor organisation) when working on the Contract.

29 HEALTH AND SAFETY

29.1 The Supplier must perform its obligations meeting the requirements of:

29.1.1 all applicable Law regarding health and safety; and

29.1.2 the Buyer's current health and safety policy while at the Buyer's premises, as provided to the Supplier.

29.2 The Supplier and the Buyer must as soon as possible notify the other of any health and safety incidents or material hazards they're aware of at the Buyer premises that relate to the performance of the Contract.

30 ENVIRONMENT AND SUSTAINABILITY

30.1 In performing its obligations under the Contract, the Supplier shall, to the reasonable satisfaction of the Buyer:

30.1.1 meet, in all material respects, the requirements of all applicable Laws regarding the environment; and



- 30.1.2 comply with its obligations under the Buyer's current environmental policy, which the Buyer must provide, and make Supplier Staff aware of such policy.

31 TAX

- 31.1 The Supplier must not breach any tax or social security obligations and must enter into a binding agreement to pay any late contributions due, including where applicable, any interest or any fines. The Buyer cannot terminate the Contract where the Supplier has not paid a minor tax or social security contribution.
- 31.2 Where the Supplier or any Supplier Staff are liable to be taxed or to pay National Insurance contributions in the UK relating to payment received under the Contract, the Supplier must both:
- 31.2.1 comply with the Income Tax (Earnings and Pensions) Act 2003, the Social Security Contributions and Benefits Act 1992 and all other statutes and regulations relating to income tax and National Insurance contributions (including IR35); and
- 31.2.2 indemnify the Buyer against any Income Tax, National Insurance and social security contributions and any other liability, deduction, contribution, assessment or claim arising from or made during or after the Term in connection with the provision of the Deliverables by the Supplier or any of the Supplier Staff.
- 31.3 At any time during the Term, the Buyer may specify information that the Supplier must provide with regard to the Supplier, the Supplier Staff, the Workers, or the Supply Chain Intermediaries and set a deadline for responding, which:
- 31.3.1 demonstrates that the Supplier, Supplier Staff, Workers, or Supply Chain Intermediaries comply with the legislation specified in Clause 31.2.1, or why those requirements do not apply; and
- 31.3.2 assists with the Buyer's due diligence, compliance, reporting, or demonstrating its compliance with any of the legislation in Clause 31.2.1.
- 31.4 The Buyer may supply any information they receive from the Supplier under Clause 31.3 to HMRC for revenue collection and management and for audit purposes.
- 31.5 The Supplier must inform the Buyer as soon as reasonably practicable if there any Workers or Supplier Staff providing services to the Buyer who are contracting, begin contracting, or stop contracting via an intermediary which meets one of conditions A-C set out in section 61N of the Income Tax (Earnings and Pensions) Act 2003 and/or Regulation 14 of the Social Security Contributions (Intermediaries) Regulations 2000.
- 31.6 If any of the Supplier Staff are Workers who receive payment relating to the Deliverables, then the Supplier must ensure that its contract with the Worker contains requirements that:
- 31.6.1 the Buyer may, at any time during the term of the Contract, request that the Worker provides information which demonstrates they comply with clause 31.2, or why those requirements do not apply, the Buyer can specify the information the Worker must provide and the deadline for responding;
- 31.6.2 the Worker's contract may be terminated at the Buyer's request if the Worker fails to provide the information requested by the Buyer within the time specified by the Buyer;
- 31.6.3 the Worker's contract may be terminated at the Buyer's request if the Worker provides information which the Buyer considers isn't good enough to demonstrate how it complies with clause 31.2 or confirms that the Worker is not complying with those requirements; and
- 31.6.4 the Buyer may supply any information they receive from the Worker to HMRC for revenue collection and management.



32 CONFLICT OF INTEREST

- 32.1 The Supplier must take action to ensure that neither the Supplier nor the Supplier Staff are placed in the position of an actual or potential Conflict of Interest.
- 32.2 The Supplier must promptly notify and provide details to the Buyer if an actual, perceived or potential Conflict of Interest happens or is expected to happen.
- 32.3 The Buyer will consider whether there are any reasonable steps that can be put in place to mitigate an actual, perceived or potential Conflict of Interest. If, in the reasonable opinion of the Buyer, such steps do not or will not resolve an actual or potential Conflict of Interest, the Buyer may terminate the Contract immediately by giving notice in writing to the Supplier where there is or may be an actual or potential Conflict of Interest and, subject to clause 32.4, where the reason for the unresolvable actual or potential Conflict of Interest is in the reasonable opinion of the Buyer
- 32.3.1 outside of the control of the Supplier, clauses 11.5.1.2 to 11.5.1.7 shall apply
- 32.3.2 within the control of the Supplier, the whole of clause 11.5.1 shall apply.
- 32.4 Where the Supplier has failed to notify the Buyer about an actual or potential Conflict of Interest and the Buyer terminates under clause 32.3, the whole of clause 11.5.1 shall apply.

33 REPORTING A BREACH OF THE CONTRACT

- 33.1 As soon as it is aware of it the Supplier and Supplier Staff must report to the Buyer any actual or suspected breach of Law, clause 13.1, or clauses 27 to 32.
- 33.2 The Supplier must not retaliate against any of the Supplier Staff who in good faith reports a breach listed in clause 33.1 to the Buyer or a Prescribed Person.

34 FURTHER ASSURANCES

- 34.1 Each Party will, at the request and cost of the other Party, do all things which may be reasonably necessary to give effect to the meaning of this Contract.

35 RESOLVING DISPUTES

- 35.1 If there is a dispute between the Parties, their senior representatives who have authority to settle the dispute will, within 28 days of a written request from the other Party, meet in good faith to resolve the dispute by commercial negotiation.
- 35.2 If the dispute is not resolved at that meeting, the Parties can attempt to settle it by mediation using the Centre for Effective Dispute Resolution ("**CEDR**") Model Mediation Procedure current at the time of the dispute. If the Parties cannot agree on a mediator, the mediator will be nominated by CEDR. If either Party does not wish to use, or continue to use mediation, or mediation does not resolve the dispute, the dispute must be resolved using clauses 35.3 to 35.5.
- 35.3 Unless the Buyer refers the dispute to arbitration using clause 35.4, the Parties irrevocably agree that the courts of England and Wales have exclusive jurisdiction.
- 35.4 The Supplier agrees that the Buyer has the exclusive right to refer any dispute to be finally resolved by arbitration under the London Court of International Arbitration Rules current at the time of the dispute. There will be only one arbitrator. The seat or legal place of the arbitration will be London and the proceedings will be in English.
- 35.5 The Buyer has the right to refer a dispute to arbitration even if the Supplier has started or has attempted to start court proceedings under clause 35.3, unless the Buyer has agreed to the court proceedings or participated in them. Even if court proceedings have started, the Parties must do everything necessary to ensure that the court proceedings are stayed in favour of any arbitration proceedings if they are started under clause 35.4.



35.6 The Supplier cannot suspend the performance of the Contract during any dispute.

36 WHICH LAW APPLIES

36.1 This Contract and any issues or disputes arising out of, or connected to it, are governed by English law.

V. Annex 1 – Processing Personal Data

Part A Authorised Processing Template

This Annex shall be completed by the Controller, who may take account of the view of the Processor, however the final decision as to the content of this Annex shall be with the Controller at its absolute discretion.

The contact details of the Controller's Data Protection Officer are: Richard Page –
richard.page@cefass.gov.uk

The contact details of the Processor's Data Protection Officer are: AJ Adesanya
AJ.Adesanya@eventperfekt.com

The Processor shall comply with any further written instructions with respect to processing by the Controller.

Any such further instructions shall be incorporated into this Annex.

Description of authorised processing	Details
Identity of Controller and Processor / Independent Controllers / Joint Controllers for each category of Personal Data	The Parties acknowledge that for the purposes of the Data Protection Legislation, the Buyer is the Controller and the Supplier is the Processor in accordance with Clause 14 Data Protection And Security of the Short Form Terms.
Subject matter of the processing	The processing is needed in order to ensure that the Supplier can effectively deliver the Services required by the Buyer under this Contract.
Duration of the processing	The Term of this Contract.
Nature and purposes of the processing	Collection, recording, storing, use, erasure or destruction of data required in the delivery of the Contract Services, specifically for the Core Requirement as per point 1 in Scope of Requirements in Annex 2.
Type of Personal Data being processed	Full name, title, email address, telephone number, bank account details (only for the purposes of transferring money to the Data Subject), postal address (only if required for the process of transferring money to the Data Subject).
Categories of Data Subject	Event participants, employees and staff of the Buyer, employees and staff of Authorised Users, employees and staff of third-party suppliers.
Plan for return and destruction of the data once the processing is complete UNLESS requirement	Any Personal Data will be returned to the Buyer upon request or destroyed (to the extent technically and legally practicable) at the end of the Contract, to be confirmed with the Buyer prior to the Contract termination.



under law to preserve that type of data	
Locations at which the Supplier and/or its Subcontractors process Personal Data under this Contract and International transfers and legal gateway	At the Supplier's premises as per Section 3 of the Order Form and locations in Africa as required by the Buyer, in accordance with Section 5 of the Order Form.
Protective Measures that the Supplier and, where applicable, its Subcontractors have implemented to protect Personal Data processed under this Contract against a breach of security (insofar as that breach of security relates to data) or a Data Loss Event (noting that any Protective Measures are to be in accordance with Annex 6 (<i>Security Management</i>), if used)	Not applicable

Part B Joint Controller Agreement (*Optional*)

Not Used

Part C Independent Controllers (*Optional*)

Not Used

VI. Annex 2 – Specification

1. Introduction

Cefas (The Centre for Environment, Fisheries and Aquaculture Science) is an executive agency of Defra. It is an applied science agency that primarily supports government decision making whilst extending its reach across public sector, the EU, and wider markets where possible in regard to marine and closely related environments.

Our work takes us from freshwater to the open ocean, and includes both wild and farmed fish. Our influence and leadership spans a wide spectrum of issues, including:

- climate change impacts and adaptation
- marine planning and environmental licensing
- sustainable fisheries management
- marine biodiversity and habitats
- fish and shellfish health and hygiene
- emergency response.

For further background information on Cefas, please visit our website at <http://www.cefas.co.uk>

2. Background

Cefas, along with other UK government Arm's Length Bodies (ALBs), lead and deliver a variety of international projects across the African region, supporting countries to tackle marine pollution, support sustainable seafood practices and establish designated, well-managed and enforced MPAs. These programmes include the [Ocean Country Partnership Programme \(OCP\)](#) and the Animal Health Systems Strengthening project, among others. See the [Cefas website](#) for further detail on where we work and the programmes Cefas is currently involved in.

As part of this work, Cefas hold workshops, conferences, and other events of this nature across the African region, to engage with in-country partners and stakeholders.

Cefas requires the Supplier to provide regional support for a number of activities related to these events.

This Contract will be awarded by Cefas as the Contracting Authority, with the following included as Authorised Users with access to the Contract as per the Conditions of Contract: Department for Environment, Food and Rural Affairs (Defra), Animal and Plant Health Agency (APHA), Marine Management Organisation (MMO) and Joint Nature Conservation Committee (JNCC).

The Contract will be awarded as a Call-Off Contract, up to a maximum value of £130,000 including VAT, over the full Contract period. Cefas is unable to guarantee the value of work that will be awarded within that maximum value. Cefas is unable to confirm the number or scale of events that may require support, but we will endeavour to notify the awarded Supplier as far in advance as is possible.

3. Scope of Requirements

At present, Cefas may require support in the following countries where there are active projects:

- Ghana
- Zambia
- Uganda
- Senegal
- South Africa



- Mozambique
- Madagascar
- Sierra Leone
- Nigeria

This is not a definitive list, and it is expected that further countries within Africa may be added throughout the duration of this Contract.

It is essential that the Supplier has knowledge and expertise of local suppliers in-region and/or in-country, as well as a strong understanding of business and cultural practices and expectations.

Where the Supplier is required to procure services as per below, a minimum of 3 quotes will be obtained (where possible) to ensure best value for money, and these will be provided to Cefas or the Authorised User for consideration before proceeding.

The Supplier is required to keep a thorough record of, and provide to Cefas where requested, quotations, invoices, receipts and any other financial transactions. Cefas will provide further information on specific requirements to the awarded Supplier.

The Supplier will consider sustainability and minimise environmental impact as much as is possible, in providing the required services.

Services:

The Supplier is required to provide the following:

- 1) CORE REQUIREMENT:** Provide event participants daily subsistence payments to cover travel, food, accommodation etc. (in line with amounts and requirements confirmed by Cefas or the Authorised User), using mobile money or online banking, or similar.
 - a) For some events, the Supplier may be required to make cash payments to participants in-person, but this will be in exceptional circumstances only. The Supplier must be able to make arrangements for a member of their team or a suitable appointed subcontractor to attend the event and manage this process.
- 2)** Support with visa application processes for event participants.
- 3)** Procurement of suitable accommodation for training, workshop and conference participants (specifications to be provided by Cefas or Authorised User).
- 4)** Procurement of suitable venue hire for training, workshops, conferences etc. (specifications to be provided by Cefas or Authorised User).
- 5)** Hire of audio-visual equipment and other event equipment (e.g., chairs, flipcharts etc.) as needed.
- 6)** Procurement of catering for events, considering any dietary requirements.
- 7)** Procurement of in-country travel arrangements for participants to the events, and support logistics of these arrangements as required.
- 8)** Procurement of in-country advertising support for events, as needed.



- 9) **Optional:** procurement of translation and interpretation services, as needed.
- 10) **Optional:** support with/procurement of regional travel for participants, where required.
- 11) **Optional:** procurement of laboratory consumables and equipment from in-country and regional suppliers.
- 12) **Optional:** support with transportation logistics and import processes for equipment Cefas are sending into country.

4. Management of Requirement Requests

- 4.1. Cefas will assign a dedicated Contract Manager (CM) as the key contact for the duration of the Contract.
- 4.2. The Supplier will attend a regular meeting via MS Teams with the Cefas CM (and other Cefas staff or Authorised Users as required) to discuss current and upcoming requirements, address any queries or implement any improvements or lessons learnt, ensure Contract spend is being managed and tracked accurately including prompt provision of purchase orders, and receipt and payment of invoices. Meeting occurrences to be confirmed on Contract initiation.
- 4.3. All new requirement requests from Cefas staff or Authorised Users will be made via the CM and subsequently communicated to the Supplier to start the quotation and planning process. Cefas will endeavour to provide as much notice as possible for new requirements, but the Supplier should be able to mobilise quickly in some instances.
- 4.4. On Contract initiation, Cefas will agree with the Supplier a template for the requirement request and quotation process, to ensure all necessary detail required is captured at the outset, to enable the Supplier to provide an accurate quotation.
- 4.5. Quotations for each requirement request will be based on the rates provided by the awarded Supplier in their bid (APPENDIX 6 – Cefas Pricing Schedule) and confirmed in the final Contract.
- 4.6. Any changes to the quotation after the initial go-ahead decision by Cefas, must be agreed with Cefas in writing before being implemented. Any additional costs that have not been agreed as the per above process will not be paid.

5. Travel and Subsistence

- 5.1. A majority of the required services will be delivered remotely by the Supplier. Where travel is required, for example to provide cash payments to event participants, the Supplier can claim Travel and Subsistence in line with the confirmed policy which will be provided by Cefas.

6. Pricing

- 6.1. The Supplier will be required to manage all invoicing and payments to any third party suppliers, and will then invoice Cefas on actuals incurred, providing evidence of the spend.
- 6.2. The Supplier will provide their pricing for managing the required activities and services, as per the details in APPENDIX 6 – Cefas Pricing Schedule.
- 6.3. All quotations for requirement requests under the Contract will be in line with the management / commission rates submitted in the Suppliers bid and confirmed in the final Contract.

7. Contract Details



7.1. The Contract will be awarded as a Call-Off Contract, up to a maximum value of £130,000 including VAT over the maximum Contract period.

7.1.1. This £130,000 is the value to the immediate awarded Supplier for their management / commission cost only, it does not include the total spend that will be routed through the awarded Supplier to the required third party suppliers.

7.2. Cefas is unable to guarantee the value of work that will be awarded.

7.3. Cefas is unable to confirm the number or scale of events that may require support, but every endeavour will be made by Cefas to notify the awarded Supplier as far in advance as is possible.



VII. Annex 3 – Charges

The Contract will be awarded as a Call-Off Contract, up to a maximum value of £130,000 including VAT, over the full Contract period. This £130,000 is the value to the immediate awarded Supplier for their management / commission cost only, it does not include the total spend that will be routed through the awarded Supplier to the required third party suppliers.

Cefas is unable to guarantee the value of work that will be awarded within that maximum value. Cefas is unable to confirm the number or scale of events that may require support, but we will endeavour to notify the awarded Supplier as far in advance as is possible.

1. PRICING SCENARIO

For the purposes of evaluation, please provide your total cost for arranging the below hypothetical requirement. **Costs presented should not include the cost for the actual services themselves but only for the cost you would be charging Cefas to arrange these services.**

Cefas require the Supplier to book a venue (determined by Cefas) including catering for lunch for a 2-day in-person event for 20 participants in central Pretoria. Cefas also require the Supplier to manage mobile money payments to the 20 participants to cover their travel and subsistence up to a total maximum of £50 per participant. Value of the actual services procured is ~£10,000.

Goods or Services Required	Unit	Qty	Total Cost (ex VAT)	VAT (if applicable)
As per Costing Scenario above	Total Fixed Cost	1	£1,000	£200
Please confirm how this rate was calculated (e.g., a set % of total cost of services arranged): Our fee is calculated as a 10% management commission on the total value of services arranged. This percentage covers the coordination and administrative efforts required to organize the event, including liaising with vendors, managing logistics, and ensuring compliance with Cefas's requirements.				
Total Cost:			£1,200	

Please also confirm your standard rate applied to all requirements and how this rate is calculated.



Standard rate and how rate is calculated

(e.g., a set % of total cost of services arranged)

Our standard rate is a fixed 10% commission applied to the total value of third-party services arranged. This percentage-based model ensures flexibility across varying event sizes while maintaining consistent quality. The fee covers the cost of our experienced delivery personnel—including logistics managers, compliance officers, and regional event staff—alongside full vendor coordination, scheduling, and delivery oversight. It also includes operational governance such as risk management, safeguarding, financial reconciliation, and client reporting, ensuring transparent, accountable delivery aligned with all project standards.

Payments will be made on delivery/completion of services and on provision of evidence of the agreed services having been booked/arranged and evidence of the cost of those services.



Centre for Environment
Fisheries & Aquaculture
Science



Cefas

VIII. Annex 4 – Supplier Tender



1.1 – Organisational Experience

Event Perfekt Global Ltd is a UK-registered event management company (Company No. 15875326), formed in 2023 to oversee compliance-led and public-sector event delivery across Africa, the UK, and the Middle East. While newly incorporated, it is an active trading entity, supported by over 15 years of experience through its parent company, **Event Perfekt Ltd** (Company No. 05332996), established in 2005.

Together, we deliver strategic, end-to-end solutions for **government, donor, and corporate events** — including policy summits, community outreach, leadership training, and hybrid stakeholder programmes. Our operations are supported by in-country partners, UK-based oversight, and tools for real-time coordination, safeguarding, and financial control.

Principal Areas of Business Activity

- Full-Service Event Management – Planning, design, and execution across formats (physical, hybrid, digital)
 - Stakeholder & Delegate Coordination – Registration, comms, CRM tracking, multilingual access
 - Logistics & Delivery Support – Visa facilitation, transport, accommodation, AV/staging, catering
 - Subsistence Disbursement – Delivered via mobile money, in-person cash (GDPR-compliant), or digital banking
 - Data & Safeguarding Compliance – Alignment with UK GDPR, NDPA, DPA 2018, and local safeguarding laws
 - Procurement Governance – Three-quote sourcing, vendor checks, H&S verification, VFM logs
 - Sustainability Practices – Emissions tracking, ISO 20121-aligned methods, local sourcing
- Our delivery model blends UK PMO control with regional teams, providing the agility to operate effectively in diverse contexts.

Relevant Experience in Public Sector and Donor Projects

The Event Perfekt team has led public-sector and donor-aligned projects through previous roles and partnerships. Collectively, we bring experience in:

- UK government-aligned procurement
- Event compliance and safeguarding frameworks
- Stakeholder and ministerial engagement across UK and African markets
- Logistics delivery in regulated and cross-border environments
- Outcome tracking, evaluation, and donor reporting

Case Study 1: Africa-Wide GDPR & Data Protection Workshop Series



Client: 3Consulting (West Africa)

Delivery Locations: Nigeria, Zambia, Ghana, Senegal, Uganda

Dates: 08/06/23 – 10/06/24 (Ongoing planning for additional countries)

Overview:

A cross-border training programme on data privacy, regulatory compliance, and digital safeguarding for SMEs, public institutions, and tech regulators. Event Perfekt manages full delivery, including:

- Venue hire, catering, AV and interpretation
- Delegate registration, mobile money disbursement, CRM updates
- Stakeholder and ministerial alignment
- Hybrid infrastructure and compliance walk-throughs
- Multilingual content and post-event GDPR logs

Scale: Delivered in 4 countries to date, with **650+ participants**, 12 local facilitators, and five delivery teams over 6 weeks. Events ranged from 50–150 attendees, tailored to local languages and accessibility needs.

Case Study 2: NNPC Community Engagement Programme (Annual)

Client: Nigerian National Petroleum Company (NNPC)

Locations: Lagos & Port Harcourt

Delivery Period: December 2022 – Ongoing

Annual CSR event supporting 1,000+ community beneficiaries. Event Perfekt provided full event delivery including venue sourcing, catering, local transport logistics, branding, merchandise, entertainment coordination, and on-site risk management.

We arranged in-country travel and delegate flow, secured AV and staging equipment, and managed safeguarding and subsistence distribution. End-to-end planning included 3D venue layouts, vendor contracting, entertainment scheduling, and stakeholder coordination. Post-event feedback and impact assessments inform future improvements.

Delivered annually with 20+ in-country staff, 15 vetted local vendors, and a UK-based coordination team. The contract is renewed based on delivery quality and measurable outcomes.

- **Regional Presence & Local Delivery Capability**

We maintain a trusted delivery network in:

- **Nigeria, Ghana, Uganda, Senegal, Zambia, South Africa, Sierra Leone, Mozambique, and Kenya**

Each country is supported by local delivery teams trained in safeguarding, VFM compliance, and reporting. All procurement is governed by a three-quote rule and delivery outputs are tracked via our UK PMO and digital logs.

1.2 – Core Requirement: Proposed Solution

Event Perfekt Global Ltd offers a fully compliant, secure, and field-tested solution for the disbursement of daily subsistence payments to event participants. This solution prioritises traceability, risk mitigation, and regional appropriateness, while remaining flexible to accommodate in-person cash payments in exceptional scenarios.

Compliance with the Core Requirement

Requirement	Proposed Solution	Compliant
Subsistence payments via mobile money or online banking	We use mobile platforms such as Flutterwave, Paystack, MTN Mobile, and M-Pesa to issue direct payments to verified participant accounts as it is reporting compatible.	Yes
In-person cash payments for exceptional cases	Managed on-site by a dual-signatory system, supported by security, and with full reconciliation and reporting usually disbursed by a qualified accountant.	Yes
Record keeping and traceability	Logs, receipts, sign-in sheets, and reconciliation reports submitted within five working days of event close	Yes

1. Payment Infrastructure

All participants are pre-registered in advance of each event. Where possible, Event Perfekt uses verified mobile money and online banking channels. Participants submit their payment details securely through a GDPR-compliant registration form. Disbursements are confirmed by SMS, email, or printed slip.

Payment providers are selected based on regional compatibility, fraud prevention capabilities, and ease of access for participants. These include:

- **Flutterwave** and **Paystack** (West and Central Africa)
- **MTN Mobile Money** (Ghana, Uganda, Zambia)
- **M-Pesa** (Kenya and East Africa)

2. In-Person Cash Disbursement (for exceptional cases)

Where participants are unable to receive digital payments (e.g. unbanked or rural attendees), in-person cash payments are issued under the following control framework:

- Requires prior written approval from the Contract Manager or authorised user.
- Managed by two nominated personnel (Payment Officer and Finance Lead), with visible ID and registers.
- Secure storage and handover procedures are followed on-site.
- Recipients sign or and (thumbprint) as we have done in the past) disbursement forms with amounts noted clearly.
- Security is provided by either venue personnel or approved third-party security staff.

- An exception report and full reconciliation log are submitted within 48 hours of event close.

3. Event Delivery Workflow

Prior to each event, our PMO team validates participant registration and financial details. The in-country logistics team confirms venue readiness and financial disbursement strategy based on regional feasibility.

- **Venue and catering** are sourced using a 3-quote procurement process.
- **Subsistence rates** are pre-approved and logged in the finance and compliance tracker we have used net-suite in our previous delivery.
- **All payments** (digital or in-person) are recorded against a central ledger and matched to participant lists.

We maintain strict controls on payment thresholds, daily cash limits, and segregation of duties. Disbursement records are stored securely and made available to the client on request.

4. Evidence of Previous Delivery

Event Perfekt has successfully implemented this model in Nigeria, Zambia, and Kenya during GDPR training workshops and stakeholder events.

Examples include:

- **December 2023, Lagos:** Controlled cash disbursement to over 80 rural attendees. Payments were completed on-site with verified ID and full reconciliation within 48 hours.
- **June–November 2023:** Payments to over 200 participants via mobile money using Flutterwave in Uganda and Ghana, with 100% accuracy and zero reported delays.

5. Sustainability, Inclusion, and Risk Management

- We prioritise digital payment options to reduce cash handling and physical material waste.
- For attendees with limited literacy or digital access, our event team provides support in local languages and offers on-site registration assistance.
- Disbursement risks are mitigated by securing pre-event authorisation, limiting cash thresholds, and requiring joint sign-off on all transactions.
- GDPR and NDPA compliance is maintained across all financial and registration data, and our cybersecurity team conducts regular risk reviews of our platforms.

6. Conclusion

Event Perfekt Global's payment solution is robust, field-tested, and structured for audit-readiness. It is flexible to local realities while ensuring full alignment with the specification's core requirements. It ensures value for money, safety, participant satisfaction, and regulatory compliance.

2.1 – Social Value: Supporting Strong, Integrated Communities

At Event Perfekt Global Ltd, social value is embedded in our delivery model and culture. Our approach prioritises inclusion, skills development, and local empowerment across all locations where we operate. We apply these principles in practice — not as a box-ticking exercise — and our team includes people with lived experiences that reflect the communities we serve.

Workforce Development and Youth Skills Building

We actively recruit, train, and retain talent from local communities. In Ghana (2023), we identified a talented young illustrator during a GDPR training event. He was engaged on a paid basis to deliver live artwork for delegates during breaks and has since been mentored into a permanent creative support role. Similarly, in Senegal, we hired local student delegates during a training series, providing paid coordination roles and event logistics exposure — two of these are now junior associates supporting West Africa delivery.

Empowerment Through Local Procurement

Across Zambia, Uganda, and Nigeria, over 70% of our catering providers are women-owned rural enterprises. For example, during a regional stakeholder event in Lagos, we contracted a local female-led kitchen cooperative who produced culturally relevant, nutritious meals. We ensured they received pre-event safety and allergen training, and post-event documentation to support future public-sector tenders. Their success story has now led to them winning additional contracts.

Disability Inclusion and Accessibility

In Zambia (2022), we engaged an autistic local artist after discovering his portfolio via a community hub. He created delegate sketches as part of a therapeutic breakout session, enriching the event experience and promoting inclusive engagement. Our delivery team is led by a woman founder with direct experience raising a child with autism, which has shaped our inclusive planning ethos.

Supplier Mentoring and Legacy Building

We don't just procure — we empower. Local vendors receive pre-engagement briefing on safeguarding, financial records, and safety documentation. These micro-enterprises often go on to formalise their operations with our guidance, making them eligible for future government contracts. All procurement is done through three-quote processes to ensure transparency and VFM.

Alignment with This Contract

To support strong, integrated communities under this contract, we will:

- Prioritise youth and marginalised community involvement through paid roles and mentoring.
- Engage women-led and minority-owned enterprises in catering, printing, and logistics.
- Use multilingual and regionally representative staff to bridge cultural gaps.
- Include accessibility features, local content, and wellness support at each event.
- Measure and report social value outcomes post-delivery (e.g, % of spend with MSMEs, no. of trainees onboarded).

Our impact is measurable, and our commitment is lived daily — not outsourced or added on. We bring communities with us, not just services.

2.2 – Environmental Protection and Improvement

At Event Perfekt Global Ltd, our commitment to environmental responsibility is embedded in our delivery model. We integrate sustainability principles into every stage of event planning and execution, balancing client needs with environmental stewardship and local community benefit.

1. Creating Environmental Value for Local Communities

We prioritise local sourcing, reuse of materials, and minimal-impact logistics to ensure every contract delivers both social and environmental value:

- **Local Procurement:** We source catering, printing, transport, and accommodation from in-country vendors. This reduces freight emissions, supports the local economy, and promotes knowledge exchange on sustainable practices.
- **Sustainable Event Materials:** Wherever possible, we use reusable signage, recycled materials, and regionally produced branding items. Name badges, lanyards, and banners are designed for reusability and cultural relevance.
- **Green Skills Empowerment:** Local teams are briefed on low-waste catering, energy-efficient AV setups, and site-level waste separation. We also educate our suppliers on sustainable business practices during pre-event onboarding.

2. Environmental Accreditations and Internal Policy

While Event Perfekt Global Ltd is not yet certified under ISO 14001 or ISO 20121, we operate under a defined internal Sustainability Commitment and have begun aligning our internal practices with ISO 20121:2012 standards for sustainable event management.

- Our internal framework is supported by Castor Vali, our in-house risk and environmental advisors, who hold ISO 14001, ISO 45001, and ISO 9001 certifications.
- Our PMO & Logistics Manager, Mary, is responsible for implementing low-waste, low-carbon event practices, working under the direction of the Programme Director and in consultation with an environmental specialist to ensure these practices are embedded across in-country deployment.
- We also adopt many of the DEFRA Greening Government Commitments, including responsible waste disposal, carbon-reducing travel, and digital-first planning practices.

3. Minimising Environmental Impact of Travel and Events

We adopt a layered approach to reducing environmental impacts, particularly around event logistics and movement:

- **Shared Transport and Smart Routing:** We promote pooled shuttles, grouped pickups, and regionally based drivers to reduce emissions. Delegates are grouped based on geography to reduce single-car journeys.
- **Venue Selection Strategy:** Our logistics team prioritises venues with onsite accommodation or those within walking distance. We also assess venues for natural light, ventilation, and low-energy AV compatibility.
- **In-Country Printing:** All print materials are produced locally to avoid air freight and long-distance courier services.
- **Hybrid & Low-Impact Options:** Where appropriate, we offer digital event packs, hybrid session integration, and reusable staging materials.

We track and document environmental actions through our internal RAID logs and use event debriefs to assess carbon reduction outcomes.

In conclusion, we promote environmental responsibility across all touchpoints.

- Staff receive training on low-carbon tools, sustainable procurement, and digital-first delivery.
- Suppliers are briefed on expectations during onboarding, with guidance on local sourcing and waste reduction.
- We actively engage customers — including contracting authorities, stakeholders — by offering greener alternatives (e.g. digital packs, pooled transport, reusable signage), and we report on environmental metrics post-event. This ensures our delivery supports client sustainability targets as well as wider community benefit.

1.8 – Quality Management

Event Perfekt Global Ltd applies ISO 9001:2015 principles across all aspects of its operations, despite not currently holding formal certification. Our quality management system (QMS) is embedded through secure platform use, staff training, process assurance, and structured documentation, enabling consistent delivery in regulated, security-sensitive environments.

Although we do not yet hold ISO certification, our approach is grounded in practical alignment with its standards. We operate using secure, penetration-tested SaaS tools that ensure consistency, traceability, and service continuity. Our staff and consultants are trained in public-sector delivery frameworks, including departments with ISO-certified environments. Most of our senior delivery team are security cleared and experienced in managing public-facing projects with risk and audit requirements.

We maintain documented standard operating procedures (SOPs), checklists, and delivery trackers that are reviewed quarterly by the Risk & Compliance Team. These are supported by gateway reviews, milestone signoffs, and a formal RACI matrix that defines responsibility and accountability at all levels.

A live Lessons Learned register informs our continuous improvement process. Our internal Quality & Compliance Lead is security-cleared and certified as a Data Assurance and Cybersecurity Lead. He is responsible for quality documentation, internal audits, and management of our non-conformance and CAPA (Corrective and Preventive Action) register. He is supported by Castor Vali, our internal assurance partner, who operates under ISO 9001-certified systems and provides additional oversight.

We expect to complete ISO 9001 audit readiness in line with our 2025 roadmap and are already implementing audit logs, document controls, and internal review cycles consistent with certification pathways.

1.4 Optional Requirements 8–12: Proposed Solution

Event Perfekt Global Ltd confirms full capability to deliver all Optional Requirements (8–12), drawing on our experience coordinating over 40 events across multiple African countries. These services are routinely embedded into our delivery framework and supported by trained in-house leads and established local networks.

- **Requirement 8 – Visa Letters and Entry Documentation**
We provide formal invitation letters, confirm travel and accommodation details, and liaise with embassies and immigration officials. This process is supported by our established presence in the countries of operation, allowing for efficient handling of documentation in line with local visa requirements.
- **Requirement 9 – On-Site Event Staff and Coordination Support**
We deploy trained, pre-vetted in-country staff including registration leads, first aiders, floor coordinators, security, local police, vendor supervisors, and guest liaison officers. All staff are briefed through daily stand-up meetings and operate under pre-approved safeguarding and H&S protocols.
- **Requirement 10 – Event Packs and Delegate Materials**
We design and distribute branded delegate materials including welcome packs, signage, and digital handouts. Materials are printed locally to reduce emissions and cost, with QR codes used to access schedules, health information, and evaluations.
- **Requirement 11 – Booking of External Venues, Accommodation and Transport**
Our logistics team manages bookings via a documented three-quote procurement process. In rural areas where online platforms may be inaccessible, we coordinate directly with vetted local providers. All venues and accommodation meet H&S standards, and ground transport includes trained drivers, medical support plans, and local emergency contacts.
- **Requirement 12 – Local Risk Assessment and Mitigation**
We manage event risk through collaboration with our internal compliance and field assurance advisors. This includes site-specific risk assessments, liaison with local authorities, and distribution of emergency procedures to all staff and delegates.
- **Environmental Readiness and Value for Money**
We prioritise reusable branding, local production, batch logistics, and hybrid-ready setups to reduce environmental impact and support cost control — aligning with Cefas' sustainability objectives.

1.6 – Project Team and Delivery Structure

Event Perfekt Global Ltd has established a hybrid, regionally supported delivery structure to meet the demands of cross-border event logistics and stakeholder management. Our approach blends centralised UK governance with embedded regional coordination, enabling fast mobilisation, consistent compliance, and high service quality across Lower Middle-Income Countries (LMICs).

We adopt a hybrid methodology combining Waterfall for structured delivery milestones and gateway reviews, Agile for flexibility, and Lean resource management to optimise costs and reduce overheads.

Key Personnel

The following personnel are core to the successful delivery of this contract. All are pre-identified, available upon award, and operate under strict GDPR, confidentiality, and safeguarding protocols.

Name	Role	Grade	Function
Tolulope Lynda Kumolu Johnson Johnson (Tolu Johnson)	Event Director & Contract Lead	Executive	Commercial lead, oversees contract governance, quality assurance, and risk
Dasha White	Programme Director	Executive	Strategic programme lead, stakeholder engagement, escalation management
Margaret Wellington	Programme Manager	Senior	Delivery coordination, milestone tracking, operational assurance
Mary Sogbanmu	PMO & Logistics Manager	Mid-Level	Supplier engagement, logistics oversight, delivery documentation
Greg Anobili	Project Manager (UK)	Mid-Level	Vendor coordination, logistics workflows, daily delivery check-ins
Fayeraome Ransome Otaji	Africa Regional Delivery Lead	Senior	In-country delivery lead, regional vendor performance, KPI monitoring
Zeeshan Mansoor	Project Manager (Africa)	Mid-Level	Remote and in-country deployment, escalation response, logistics support
Grace Nwokoye	Regional Data & Privacy Officer	Senior Specialist	Data protection lead (DPA, GDPR, NDPA), safeguarding oversight
AJ Adesanya	Data Assurance & Cybersecurity Lead	Senior Specialist	Cybersecurity, platform access control, ISO and incident governance

Support Consultants and Subcontractors

All support roles are in-house consultants or optional subcontractors. They do not access personal data, systems, or client premises.

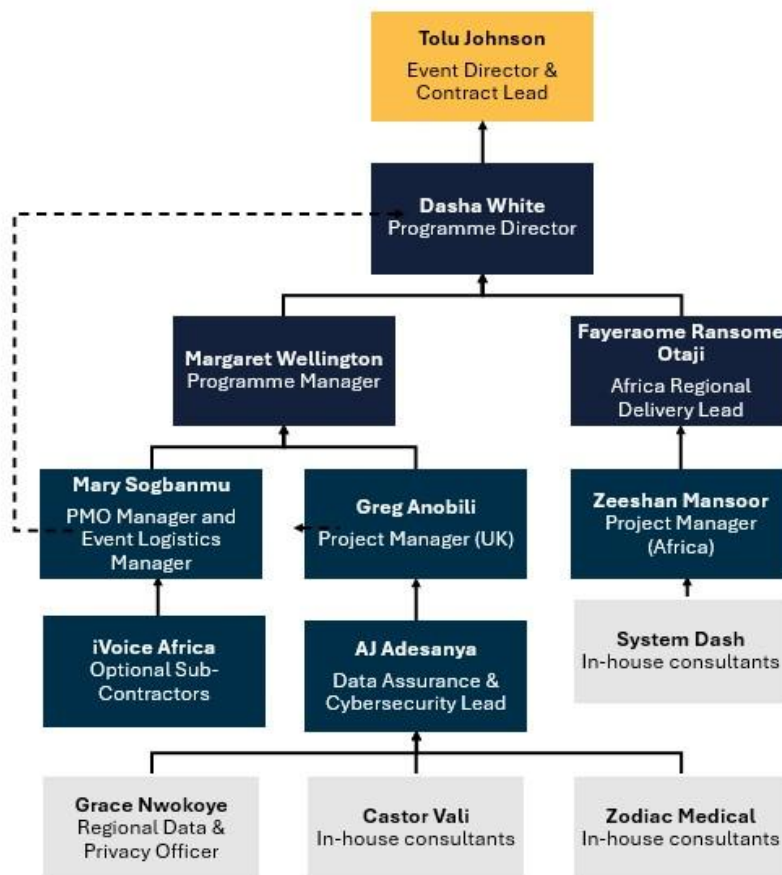
- Castor Vali – In-house Risk & Safety Advisors
- Zodiac Medical – Safeguarding and Emergency Planning

- System Dash – Secure Platform Integration and Compliance
- iVoice Africa – Interpretation and Signage (used only when required)

Escalation and Delivery Governance

An internal RACI matrix, RAID logs, and shared delivery dashboards underpin communication and accountability. Escalation is handled through the Programme Director and Programme Manager, with regional input where required. This model ensures a responsive structure that supports governance, stakeholder assurance, and efficient delivery at scale.

ORGANIZATIONAL CHART



CV Submission Note:

All CVs for the identified key personnel have been included as part of this submission. These have been scaled down in length for clarity and relevance to the scope of this framework. Full professional profiles and extended role histories are available upon request.

1.5 – Project Management, Planning and Implementation

Event Perfekt applies a structured, responsive delivery model for all requirement requests, from quotation to post-event reporting. We blend UK-based governance with embedded in-country teams to ensure mobilisation at short notice, continuity in service, and consistent quality assurance across diverse regions.

• Planning and Implementation Process

Each requirement is managed under our central PMO and delivered using hybrid methodologies: Agile (for adaptive planning), Waterfall (for gateway reviews and documentation), and Lean (for resource scalability). Once a request is received, our team:

- Initiates a delivery plan through a secure PMO portal.
- Allocates a Regional Delivery Manager to coordinate in-country logistics and suppliers.
- Confirms specification and budget with Cefas before supplier engagement.
- Triggers a RAID review and safeguarding checks via our governance tracker.
- Mobilises trained local teams, supported by HQ-based technical and compliance leads.
- Implements dashboards, checklists, and KPIs to track delivery in real time.

Standard turnaround from request to mobilisation: 24–72 hours, depending on territory. Short-notice deployment is managed via our existing vendor frameworks and pre-agreed escalation plans.

• Supplier and Delivery Oversight

- All suppliers are:
 - Pre-vetted through safeguarding, health & safety, and public-sector standards
 - Engaged through a 3-quote procurement process
 - Tracked using our delivery dashboards and readiness checklists
 - Substituted where needed via our contingency and substitution protocols

Procurement, disbursement, and transport vendors operate under documented SLAs and must meet local licensing, insurance, and security requirements. Quality and compliance are assured through daily readiness check-ins, vendor reviews, and post-event audits.

Stakeholder Relationship Management

Our Programme Delivery Manager/Programme Director is the main point of contact for Cefas and will:

- Attend all planning and review meetings with Cefas stakeholders
- Maintain live access for Cefas to delivery logs, RAID reports, and spend tracking
- Coordinate approvals, flag risks early, and track lessons learned
- Ensure clarity of roles using a formal RACI structure

- We ensure alignment with Cefas through weekly briefings, delivery snapshots, and escalation protocols embedded in our project governance framework.

Risk Identification and Mitigation (Including LMIC Contexts)

Delivering in Lower Middle-Income Countries (LMICs) demands proactive and localised risk management. Our delivery framework is built around country-specific risk registers, pre-approved contingency plans, and internal escalation protocols. Each new requirement is assessed through our digital RAID system, with mitigation strategies developed and reviewed before mobilisation begins. Our Programme Delivery team, supported by in-country leads and internal compliance advisors, manages risk across five key domains: political context, infrastructure, public safety, logistics, and compliance. Our process includes:

- Country-specific risk reviews and pre-travel assessments
- Crisis protocols for route planning, public disruption, or weather events
- Backup communications plans and local security liaison
- Pre-approved alternative venues, suppliers, and transport providers
- Health and safety checks, safeguarding reviews, and permit validation
- Mobile-first finance systems to mitigate cash vulnerabilities
- Escalation protocols managed centrally and embedded in all team training

All mitigation learnings are embedded in our business continuity and contingency playbooks, which are reviewed quarterly and shared with regional teams. These documents now form part of every deployment plan, ensuring readiness even in fast-changing contexts. Below is a summary of real-world risks encountered and how we mitigated them:

Risk Type	Location	Issue Encountered	Mitigation Strategy & Outcome
Nationwide power cuts during event	Ghana	Sudden regional outage due to energy grid instability during event setup	Activated standby generator units and battery backup systems. Now standard for all delivery in power-unstable zones.
Transport disruption due to protests	Nigeria	Escalated civil protest led to roadblocks and delegate route cancellations	Local liaison rerouted via secure alternate corridors. Security briefing and police coordination activated.
Venue cancellation due to flood risk	Zambia	Flash flood warnings forced emergency venue change 72 hours before delivery	Mobilised alternative venue from pre-approved list; delegate notices and updated logistics completed within 24 hrs.
Cash handling restrictions	Kenya	Enforcement of new financial controls on bulk cash disbursement at public events	Shifted to mobile payment platforms; coordinated phased disbursement with local banking partners.
Unexpected language dialect shift	Uganda	Last-minute attendee shift included rural delegates unfamiliar with default language	Deployed multilingual internal staff, plus real-time interpretation via hybrid AV support.

Conclusion

Our project governance, supplier control, and embedded risk model enable us to operate confidently across high-risk and low-resource regions. All delivery is underpinned by documented escalation plans, transparent reporting, and shared planning tools.

We do not require daily oversight from Cefas, only access for approvals and review, allowing your internal team to retain strategic control while we manage the operational burden.

1.7 – Data Protection, Information Management and Security

Compliance with UK Data Protection Legislation

Event Perfekt Global Ltd complies fully with the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018. We act as a Data Processor, processing personal data strictly under the instruction of the Data Controller and in accordance with all statutory obligations and best practices.

Handling of Personal Data for This Contract

We will process personal data only where necessary to deliver this contract. This includes:

- Participant registration and identity verification
- Coordination of travel and in-country logistics
- Logging of subsistence payment records (no card or bank data is stored)

All data will be processed securely, retained only as required for contractual or audit obligations, and then deleted using secure methods in line with Article 5(1)(e) of the UK GDPR.

Security and Use of Digital Systems

All personal data is managed through secure, cloud-based platforms including **Flutterwave**, **LemFi**, and **Moniepoint**. These systems are encrypted at rest and in transit, penetration-tested by their providers, and include built-in access controls. No personal data is stored on local servers or physical devices.

Data transfers use encrypted channels, including TLS-equivalent standards. System access is governed by role-based permissions and multi-factor authentication for sensitive environments.

Roles and Access Oversight

Access to personal data is strictly limited to authorised staff. Responsibility is held by:

- **Grace Nwokoye – Regional Data Lead**
Holds GDPR certification and ISO 9001, ISO 27001, and ISO 22301 qualifications. Responsible for local compliance, documentation, and assurance.
- **AJ Adesanya – Data Assurance & Cybersecurity Lead**
Security-cleared and a certified Database Administrator (DBA). Oversees access control, platform compliance, DPIA delivery, and breach management. Coordinates annual security audits and system access reviews.

All staff complete mandatory annual data protection and information security training, supported by internal audit checks and role-specific induction procedures.

Event Perfekt supports all UK GDPR data subject rights, including access, rectification, erasure, and restriction. Requests are managed by the Data Assurance Lead in accordance with statutory timelines.

Subcontractor Restrictions

Subcontractors, including **iVoice Africa**, are restricted to in-country operational delivery and **do not have access** to personal data, client systems, premises, or infrastructure. These restrictions are contractually defined and monitored by the Programme Delivery Manager.

Cyber Essentials and Internal Assurance

We are currently in the **pre-certification phase of Cyber Essentials**. A full internal audit of our systems has been conducted by the Risk & Compliance Team. Certification is planned during the contract period as part of our 2025 digital governance roadmap.

Ongoing security assurance is provided by our internal risk advisory partner, **Castor Vali**, who hold:

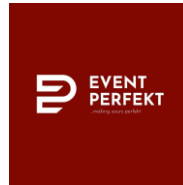
- Cyber Essentials
- ISO 9001, 14001, 28001, and 45001
- Membership in ICOC, ISoA, SCEG, and the Business Integrity Index

Policies Submitted with This Tender

The following governance documents are **submitted as part of this tender**:

- **Data Protection Policy**
- **Information Management Policy**
- **IT Security Policy**

Each policy outlines our controls for data security, system access, user responsibilities, breach response, and lawful data processing. DPIAs are completed for any new or high-risk processing activity. All data incidents are logged and escalated in line with our ICO-aligned Incident Response Plan.



1.3 – Requirements 2–7: Proposed Solution

Event Perfekt Global Ltd provides an end-to-end delivery framework that meets all six specified requirements under points 2–7 of the Scope of Requirements. Our solution integrates compliance oversight, local supplier engagement, and real-time delivery tracking to ensure each requirement is met reliably, cost-effectively, and with consideration for sustainability and cultural context.

These approaches have already been successfully applied during our GDPR deployment in certain African countries, where our team delivered visa coordination, accommodation, venue setup, transport, and subsistence support under **GDPR**, **safeguarding**, and **value-for-money** controls.

- **Requirement 2: Visa Application Support**

Solution:

We provide visa support through local representatives, using country-specific templates, embassy liaison, translation, and scheduling assistance.

Compliance:

Processes follow GDPR principles, including identity checks, risk screening, and secure data handling based on our prior deployments in African countries.

Value for Money:

Digital visa packs, early submission, and pre-checked templates reduce errors, delays, and reapplication costs.

- **Requirement 3: Accommodation Procurement**

Solution:

Accommodation is sourced via our Event Perfekt booking Portal, featuring pre-vetted providers. Where appropriate, in-country teams scout and validate local options for proximity, safety, and safeguarding compliance.

Compliance:

Providers are selected through a documented, auditable process. Contracts include safeguarding, accessibility, and H&S clauses.

Value for Money:

A 3-quote procurement process and negotiated group rates ensure cost efficiency. Local sourcing minimises travel and increases relevance.

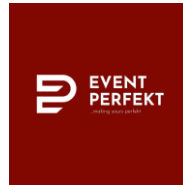
- **Requirement 4: Venue Hire**

Solution:

Venues are chosen for suitability, accessibility, and infrastructure. Site visits and operational checks are carried out by local teams.

Compliance:

Selection criteria include environmental standards, accessibility, and safety. Each venue is logged with a compliance checklist and risk register.



Value for Money:

Local benchmarking and repeat-use agreements secure competitive pricing and consistency across events.

- **Requirement 5: AV Equipment and Event Materials**

Solution:

We source AV and materials through trusted local vendors, including projectors, hybrid kits, translation equipment, and accessibility tools. We create branded materials inhouse and send to in-country local printers.

Compliance:

All AV providers are vetted. Setups are reviewed on-site before use to ensure functionality and compliance.

Value for Money:

Bundled venue/AV packages and standardised kit reduce rental, transport, and setup costs.

- **Requirement 6: Catering and Dietary Requirements**

Solution:

Menus accommodate local and international diets, allergies, and religious needs. Caterers are briefed in advance on hygiene and allergen controls.

Compliance:

All caterers operate under contracts aligned with UK food safety standards. In-country teams carry out spot checks during delivery.

Value for Money:

We apply a 3-quote method and offer simplified catering for short-format events to reduce food waste and costs.

- **Requirement 7: In-Country Travel and Delegate Transport**

Solution:

Transport is delivered through a single vetted provider per country, offering airport pickups, hotel shuttles, and venue transfers.

Compliance:

Providers are contracted with verified insurance, licences, and local compliance. Drivers are briefed on safety and protocol.

Value for Money:

Central coordination allows route optimisation, pooled transfers, and lower cost-per-seat delivery.



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**IX. Annex 5 – Optional IPR Clauses
 Not Used**



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X. Annex 6 – Security Management
Not Used



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